Thursday, January 7, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Others Present: Mayor, Farhad Ghatan; Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

Ryan Ericson, CDPD Director, introduced himself to the Council. The Mayor and Council welcomed Mr. Ericson.

ACTION AND DISCUSSION ITEMS

Proposal – Visitors Bureau

At 12:07 p.m., Mayor Ghatan introduced discussion of the Winter Romance Campaign by the Visitors Bureau. Deborah Hoskinson, Executive Director for the Visitors Bureau explained that the goal is to repurpose the current Holiday Gift Guide into a Valentine Gift Guide, to entice people to purchase a "gift of the island" for future travel, lodging, dining, etc. in 2021. Discussion followed.

Moved by Monin, seconded by Hushebeck, to approve the Winter Romance Campaign. Motion passed unanimously.

Historical Preservation Report

At 12:34 p.m., Mayor Ghatan introduced Sandy Strehlou, Historical Preservation Coordinator, to provide a quarterly update. Ms. Strehlou reported on the historical building inventory and current projects. The Mayor thanked Ms. Strehlou. No action was taken.

Systems Administration Report

At 12:54 p.m., Mayor Ghatan introduced Mike Greene, Systems Administrator, to provide an update. Mr. Greene reported listed in-progress and completed projects for year 2020. The Mayor thanked Mr. Greene. No action was taken.

Resolution No. 2607

At 1:01 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2607 concerning the FH Landfill. The resolution authorizes annual landfill monitoring for 2021. No discussion followed.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2607, authorizing the Mayor to execute an agreement with SCS Engineers for 2021 groundwater monitoring program services at the Friday Harbor Landfill. Motion passed unanimously.

Ordinance No. 1708

At 1:03 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1708 setting the salary for the newly hired Community Development and Planning Director. Administrator Wilson explained that the position was vacant at the time of passing Ordinance 1707. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Ordinance No. 1708, fixing the salary for the position of CDPD Director and amending Ordinance No. 1707. Motion passed unanimously.

Sidewalk Improvements – 105 Spring Street

At 1:04 p.m., Mayor Ghatan introduced discussion of sidewalk improvements at the corner of Spring and First Street near Coldwell Banker. Administrator Wilson explained that the corner is in need of repair. Discussion followed regarding the dimensions for buildout. **Council consensus to proceed with engineering and providing a cost estimate for sidewalk improvements**.

Pedestrian Guardrail – 305 Argyle Avenue

At 1:07 p.m., Mayor Ghatan introduced discussion of installing a pedestrian guardrail near the Spring Street roundabout. Administrator Wilson presented updated cost estimates. Discussion followed regarding the size, material and finish. **Council consensus to purchase a powder-coated steel rail.**

ADMINISTRATOR'S REPORT

At 1:10 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Finance Director Retirement – Treasurer Wilson announced that she would be retiring effective May 7, 2021. The Mayor and Council congratulated Ms. Wilson. Mr. Wilson explained next steps.
- Mullis Street Project – The Project is out to bid.
- Capital Improvement Plan – The plan is being updated. Projects were shifted due to Covid-19.
- Water Franchise Agreement – SJC will forward a draft in January.
- Water Transmission Line – The valve replacement project turned out to be more complicated than anticipated. Town will need to contract for repairs.
- Covid-19 Vaccines – SJC received about 800 vaccinations. Town will emphasize to the Health Department that Town Utility Workers, such as the Sewer Plant Operators, are essential and should be included in Group 1C.
- FH Labs – The Labs are producing excessive sewage due to infiltration. Town will begin working on an agreement to adjust the rates.
- Elsworth Project – The Grange will be required to reclaim the contaminated soil removed from the site.
- Port of Friday Harbor – A tree fell on a vehicle near Franklin Drive. The liability is on the Port of Friday Harbor.
- Radio Water Meters – 40 meters have been replaced for the pilot study.
- Fire Annexation – The Council will be presented language for fire annexation.
- West Street – Sidewalk panels are beginning to raise due to trees. A pedestrian was injured from a trip and fall. Town will present an estimate for repairs.
- PW Yard – The property is on schedule to close in April 2021.

PAYMENT OF CLAIMS
Moved by de Freitas, seconded by Monin, to approve the issuance of Claim Warrant Nos. 47381 through 47432 & EFT 1-2 dated January 7, 2021 in the amount of $267,842.43; and affirm the issuance of Payroll Warrant Nos. 17320 through 17330, ACH 34 through 36 and Direct Deposit Run dated December 31, 2021 in the amount of $341,984.33. Motion passed unanimously.

APPROVAL OF MINUTES
Moved by de Freitas, seconded by Hushebeck, to approve the minutes of December 17, 2020 as submitted. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS
An update was provided regarding utility billing.

CITIZEN RESPONSE
No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 2:01 p.m. The next regular meeting is scheduled for Thursday, January 21, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, January 21, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5). Noel Monin (Position No. 2) was absent.

Others Present: Mayor, Farhad Ghatan; Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
No public access was forthcoming.

ANNOUNCEMENTS

Mayor Ghatan thanked Becki Day, SJI Chamber Director and Victoria Compton, SJC EDC Director for their efforts on behalf of businesses for their small business advocacy throughout the Covid-19 shutdown.

Mayor Ghatan announced that the recent study for privatizing the Sidney ferry was rejected by the legislature.

ACTION AND DISCUSSION ITEMS

Sheriff's Report

At 12:03 p.m., Mayor Ghatan welcomed SJC Sheriff Ron Krebs. Sheriff Krebs updated the Council on annual statistics and quarterly activities for law enforcement. Sheriff Krebs noted that overall statistics for "crime" in year 2020 were low in part because residents and visitors were "staying home" and compared that to national level, political demonstrations were 100% peaceful. Upcoming priorities include accreditation (review process for national law enforcement standards) for Sheriff's Office. The Council thanked Sheriff Krebs. No action was taken.

SJC Department of Health Report

At 12:14 p.m., Mayor Ghatan introduced Kyle Dodd, SJC Health Manager, to make an update regarding local COVID-19 response. Mr. Dodd provided an update on general statistics, new Governor's Orders and vaccinations. SJC will remain in Phase 1 until the North region progresses. SJC is prioritizing the small amount vaccine it received. Approximately 600 vaccinations have been given to date. Mayor Ghatan and the Council thanked Mr. Dodd. No action was taken.

PUBLIC MEETING

SERP – WWTP Upgrades

At 12:30 p.m., Mayor Ghatan opened the (SERP) public meeting for comments regarding the Town's funding application for sanitary sewer system upgrades.

The Town of Friday Harbor intends to file an application for federal financial assistance with the U. S. Department of Agriculture, Rural Development, Rural Utilities Service for the for funding of upgrades to the existing wastewater treatment plant. The Department of Ecology has authorized a loan for design phase improvements.

The purpose of the meeting was to review funding sources, project description, alternatives, rate impacts and public comment as part of its public participation (SERP) process. Mayor Ghatan introduced the project engineer, Scott Wilson of Wilson Engineering, to lead the public participation meeting.

- Project Overview: These upgrades consist of the design and replacement of the sewer treatment plant SBR treatment system with an extended aeration activated sludge treatment system.
- Funding Sources: The design phase of the project will be funded by a loan from the Department of Ecology. The construction phase will be funded by a loan/grant from USDA Rural Development.
- Project Description: This project involves wastewater treatment plant improvements in order to address aging equipment, future flow and loading capacity and current standards for redundancy and reliability. Improvements include, but are not limited to: new biological treatment system, equalization basins, and new solids dewatering equipment.
- Alternatives: The alternatives for biological plant process to increase plant capacity are sequencing batch reactor (improved current system), extended aeration and membrane bioreactor. All three will enable the plant to meet current and future permit limits and send clean water to the bay allowing for safe recreational use. Membrane gives the best nutrient removal. Alternatives in decreasing cost estimates: Membrane bioreactor ($20,907,700), extended aeration ($14,567,700), and sequencing batch reactor ($13,647,700).

- Rate Impacts: No new rate increases, except those prescribed by FHMC for cost-of-living adjustments, are anticipated due to other sewer capital bonds being paid off in year 2021.
- Recommended Alternative: Extended Aeration is the recommended alternative because it is cost effective, handles variable flow and waste loads and will provide good nutrient removal.

Mayor Ghatan opened the meeting to public comment. No audience was in attendance. Hearing no testimony, Mayor Ghatan closed the public comment portion of the meeting. No action was taken.

SERP – Sewer Outfall Line

At 12:37 p.m., Mayor Ghatan opened the (SERP) public meeting for comments regarding the Town's funding application for the sewer outfall improvement project.

The Town of Friday Harbor intends to file an application for federal financial assistance with the U. S. Department of Agriculture, Rural Development, Rural Utilities Service for the for funding of upgrades to the existing sewer outfall line. The Department of Ecology has authorized a loan for design phase improvements.

The purpose of the meeting was to review funding sources, project description, alternatives, rate impacts and public comment as part of its public participation (SERP) process. Mayor Ghatan introduced the project engineer, Scott Wilson of Wilson Engineering, to lead the public participation meeting.

- Funding Sources: The funding source for the project is a Department of Ecology loan.
- Project Description: In this project the Town's wastewater treatment plant outfall pipe, which empties into the bay, will be replaced to accommodate higher capacity and reduce environmental impacts due to the aging of the pipe. A total of 1,900 feet of the outfall will be replaced in two sections with 18-inch HDPE pipe.
- Alternatives: The alternatives evaluated for the project include (1) do-nothing alternative, (2) installation of 1,100 landward feet of outfall directly on the seabed, (3) installation of the 1,100 landward feet by shallow trenching and anchoring the pipe to the sea floor, and (4) installation of the 1,100 landward feet of outfall pipe by horizontal directional drilling.
    - Alternative 1 is not acceptable due to potential of pipe failure if nothing is done since the pipe is aging and has needed repairs in the recent years.
    - Alternatives 1 and 2 can be eliminated due to the fact that permits for both would not be approved by relevant agencies due to environmental concerns.
- Recommended Alternative: Alternative 4 was the most viable option because it will have the least environmental impact, create no obstruction to navigation, and reduces the public health risk. The cost of the project is estimated to be $2,435,000. This includes design and construction.
- Rate Impacts: No new rate increases, except those prescribed by FHMC for cost-of-living adjustments, are anticipated due to other sewer capital bonds being paid off in year 2021.

Administrator Wilson noted that the Town will be considering an agreement to develop an updated utility rate study later in the day.

Mayor Ghatan opened the meeting to public comment. No audience was in attendance. Hearing no testimony, Mayor Ghatan closed the public comment portion of the meeting. No action was taken.

Proposal – Relocation of System Administration / Records Storage

At 12:52 p.m., Mayor Ghatan introduced discussion of relocating Systems Administration to the upper level of the Town Fire Station. Town Hall has a backup generator for the Fire Station and Town Hall, while the current Systems Administration next door does not. During power outages Town Hall does not have use of phones, computer network or internet because of lack of power to Town servers. Mike Greene, Systems Administrator, explained that he is seeking authorization to swap office space with the current location of records and files storage. **Council consensus to transition the department into the Fire Station.**

Resolution No. 2608

At 12:54 p.m., Mayor Ghatan introduced discussion of the hydrogeologic study of Finnegan Ridge. Administrator Wilson explained that Northwest Hydraulic Consultants returned the responsive proposal for the Finnegan Ridge study. Discussion followed regarding if it were possible that an individual parcel could be responsible for excessive stormwater.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2608, selecting and authorizing an agreement with Northwest Hydraulic Consultants to provide engineering services for the forensic hydrologic / hydrogeologic study of Finnigan Ridge to Perry Place. Motion passed 4-0 with Monin absent.

Resolution No. 2609

At 1:05 p.m., Mayor Ghatan introduced discussion of the Elsworth Avenue / Rhone Street Sewer Relocation Project. Administrator Wilson and Public Works Director Wayne Haefele explained that Change Orders Nos. 1 and 2 reconcile the project, including the reclamation of contaminated soil that will be reimbursed by the Grange. No discussion followed.

Moved by Hushebeck, seconded by de Freitas, to adopt Resolution No. 2609, authorizing Change Order Nos. 1-2 and accepting the Elsworth Avenue / Rhone Street Sewer Replacement Project. Motion passed 4-0 with Monin absent.

Resolution No. 2610

At 1:10 p.m., Mayor Ghatan introduced discussion of the Water Treatment Plant Backup Generator Project. Administrator Wilson explained that Change Order No. 1 reconciles the project. No discussion followed.

Moved by de Freitas, seconded by Hushebeck, to adopt Resolution No. 2610, authorizing Change Order No. 1 and accepting the Water Treatment Plan Generator and ATS Installation Project. Motion passed 4-0 with Monin absent.

Resolution No. 2611

At 1:12 p.m., Mayor Ghatan introduced discussion of the Mullis Street Improvement Project (818 Mullis to Spring RAB). Administrator Wilson explained that Town solicited a proposal for required materials testing. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2611, authorizing an agreement with MTC, Inc. for materials testing and special inspection of the Mullis Street Improvement Project (818 Mullis to Spring RAB). Motion passed 4-0 with Monin absent.

Resolution No. 2612

At 1:15 p.m., Mayor Ghatan introduced discussion of Resolution No 2612, selecting the engineering firm of MTC, Inc. for materials testing and other related on-call services. Administrator Wilson explained that Town often contracts for materials testing and special inspections for capital projects and wants to select Materials Testing and Consulting for A/E services. No discussion followed.

Moved by Hushebeck, seconded by de Freitas, to adopt Resolution No. 2612, selecting MTC, Inc. as the engineering firm for special and construction inspection, materials testing and non-destructive testing of capital improvement projects and related on-call services. Motion passed 4-0 with Monin absent.

Resolution No. 2613

At 1:18 p.m., Mayor Ghatan introduced discussion of Resolution No. 2613 concerning a utility rate study. Administrator Wilson explained that FCS Group was invited to provide a proposal to update the Town's 2008 Utility Rate Study. The scope of work includes updating water, sewer and stormwater utility rates and connection charges. No discussion followed.

Moved by de Freitas, seconded by Hushebeck, to adopt Resolution No. 2613, authorizing and agreement with Financial Consulting Solutions Group, Inc. to conduct a utility rate and right to connect study. Motion passed 4-0 with Monin absent.

Ordinance No. 1709

At 1:20 p.m., Mayor Ghatan introduced discussion of combining the Clerk and Treasurer position. Administrator Wilson explained that a majority of towns have combined the offices to eliminate the need for an elected treasurer. The recommendation is to combine the offices and eliminate the need for an elected (resident of Town) Treasurer given Treasurer Wilson's upcoming retirement and recruitment for a new finance director. Discussion followed regarding the process. No action was taken for the first reading of Ordinance No. 1709.

Ordinance No. 1710

At 1:31 p.m., Mayor Ghatan introduced discussion of the proposed fire district annexation. Administrator Wilson presented Ordinance No. 1710 declaring intent to annex Town into Fire District 3 and placing a proposition on the ballot for the April 27, 2021 special election. Administrator Wilson also reviewed a draft Resolution declaring the intent regarding funds dedicated to fire services. If approved, the Town will dedicate the amount currently contributed for fire service to capital infrastructure improvements. No action was taken for the first reading of Ordinance No. 1710.

FH Arts Commission – Crosswalk "Wave" Proposal

At 1:38 p.m., Mayor Ghatan introduced discussion of a proposed crosswalk project. The FHAC is seeking Council approval to install pedestrian safety stencils in crosswalks at First and Spring Streets as a lighthearted safety reminder directed at pedestrians asking that they make an effort to ensure drivers see them before stepping into crosswalks. The stencils would read "Stop Look Wave". Discussion followed regarding the concept, locations and budget. Council consensus to move forward with the proposal.

FH Arts Commission – RFP - Blair Avenue Mural

At 1:42 p.m., Mayor Ghatan introduced discussion of the revised RFP for the Blair Avenue Mural. Administrator Wilson summarized revisions which included a $5,000 budget increase.

Moved by Starr, seconded by de Freitas, to authorize the revised RFP, including budget increase, for the Blair Avenue Mural Project. Motion passed 4-0 with Monin absent.

ADMINISTRATOR'S REPORT

At 1:45 p.m., Administrator Wilson presented the Town Council with an update of the following:

- USDA Loan Application – The application package is in its final stages for the Wastewater Treatment Plant projects.
- Water Transmission Line Valve Replacement – The valve replacement on San Juan Valley Road is postponed.
- GAC Filter – Town ordered a batch of replacement carbon.
- Smoots Alley – Town will address the stormwater issues from the hillside.
- Water Meter Audit – Apollo should be providing results soon.
- AWC Grant – Town applied for a grant to repair the West Street sidewalk.

PAYMENT OF CLAIMS

Moved by de Freitas, seconded by Starr, to approve the Finance Department Agenda Items as enumerated below. Motion passed 4-0 with Monin absent.

Finance Department Agenda Items - Presented at Council Meeting: January 21, 2021

- Approval of 2021 Claim Warrants
    - Warrant Number: 47463-47498
    - Amount: $310,527.02
    - Dated: 01/21/21
- Payment of 2020 Pre-write Warrants
    - Approved by Hushebeck, Monin, and de Freitas on 01/15/21
    - Reason: Final 2020 Claims
    - Warrant Number: 47433-47462
    - ACH Number: 01/15/21 1-2
    - Amount: $143,616.49
    - Dated: 01/15/21
- Payment of 2020 Revised Payroll Warrants
    - Approved by Hushebeck, de Freitas, and Starr on 01/19/21
    - Previously approved at the 01/07/21 council meeting in the amount of $341,984.33.
    - Revision includes an addition of ACH Number 37 to correct an underpayment of social security taxes.
    - Warrant Number: 17320-17330 and 12/31/2020 Direct Deposit
    - ACH Number: 34-37
    - Amount: $342,579.55
    - Dated: 12/31/20
- Payment of 2020 Revised Treasurer Checks
    - Approved by Hushebeck, de Freitas, and Starr on 01/19/21
    - Previously approved at the 01/07/21 council meeting in the amount of $155,712.95.
    - Revision includes an addition of check number 10030 in the amount of $5,782.80 that was not included previously for a refund to the WA State Department of Revenue.
    - Check Number: 10016-10030
    - Amount of Electronic Checks: 1
    - Amount: $161,495.75
    - Dated: December 2020

APPROVAL OF MINUTES
Moved by de Freitas, seconded by Starr, to approve the minutes of January 7, 2021 as submitted. Motion passed 4-0 with Monin absent.

FUTURE AND NON-AGENDA ITEMS
Councilmember de Freitas shared an additional letter from the business roundtable group.

No future agenda items were forthcoming.

CITIZEN RESPONSE
No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 2:00 p.m. The next regular meeting is scheduled for Thursday, February 4, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, February 4, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Others Present: Mayor, Farhad Ghatan; Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
No public access was forthcoming.

ACTION AND DISCUSSION ITEMS
Proclamation – SJI Chamber, Director Becki Day
At 12:02 p.m., Mayor Ghatan proclaimed the Town's appreciation for the SJI Chamber of Commerce and Director Becki Day.

Department of Emergency Management

At 12:04 p.m., Mayor Ghatan welcomed Brendan Cowan, SJC Emergency Management Director, to make a quarterly report. Mr. Cowan presented latest developments for the Islands Oil Spill Association (IOSA) restructuring, his role in the COVID-19 response and communications. Discussion followed regarding emergency preparedness and recent power outage. The Council thanked Director Cowan. No action was taken.

Fire District No. 3

At 12:09 p.m., Mayor Ghatan welcomed Norvin Collins, SJC District 3 Chief, to make a quarterly report. Chief Collins updated the Council on annual incidents, significant accomplishments from 2020 and upcoming efforts for the annexation. Discussion followed regarding the District's response rate compared to national standards. The Council thanked Chief Collins.

Ordinance No. 1709

At 12:18 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1709 concerning the consolidation of the positions for Town Clerk and Town Treasurer. Administrator Wilson explained that a majority of towns have combined the offices to eliminate the need for an elected treasurer. The recommendation is to combine the offices and eliminate the need for an elected (resident of Town) Treasurer given Treasurer Wilson's upcoming retirement and recruitment for a new finance director. No discussion followed.

Moved by Hushebeck, seconded by Monin, to adopt Ordinance No. 1709, combining the offices of Town Clerk and Treasurer. Motion passed unanimously.

Ordinance No 1710

At 12:21 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1710 concerning the proposal to annex into Fire District 3.

Councilmember Monin announced his intention to abstain from discussion and voting due to perceived conflict of interest. Mr. Monin is an employee of Fire District 3.

Administrator Wilson explained that if approved by voters, Town would reduce its levy rate for a period of three years as described in the declaration of intent per Resolution No. 2614. Administrator Wilson listed the benefits of annexation.

Following inquiry, District Chief Norvin Collins explained that the annexation would not affect the District's levy rate. Town residents would continue to pay the same levy rate as County residents whether through contract or annexation. Annexation would not supplement its operation budget because the funds are already collected through the fire protection services agreement.

Councilmember Daniels stated his opposition to annexation as currently structured. Mr. Daniels stated that he was sympathetic and agreed that Town should try for annexation. But he believed the current "vehicle" was flawed and would create a tax for services already paid for through current town property taxes. Mr. Daniels stated that he opposed the measure without a permanent reduction in property taxes to offset the proposed levy for annexation. Mr. Daniels state

Discussion followed.

Moved by de Freitas, seconded by Hushebeck, to adopt Ordinance No. 1710, declaring an intent to annex the Town of Friday Harbor into Fire District No. 3, providing for the submission to the qualified electors of the Town an District at a special election to be held on April 27, 2021 of a proposition authorizing the annexation of the Town into the District; setting forth the text of the ballot proposition; directing proper Town officials to take necessary actions; and providing for other related matters. Motion passed 3-1 with Daniels opposed and Monin abstained.

Resolution No. 2614

At 12:31 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2614 concerning the proposal to annex into Fire District 3.

The resolution states that if annexation is approved by the voters, during the five years following annexation the Council would commit itself to redirecting the funds that are no longer required to make the approximately $315,000 annual payment for fire services as follows:

- For 2022, to reduce its levy by $200,000 below the maximum that would otherwise be allowed and dedicate at least $115,000 to capital improvements.
- For 2023, to reduce its levy by $100,000 below the maximum that would otherwise be allowed and dedicate at least $216,000 to infrastructure improvements.
- For 2024 through 2026, to dedicate at least $315,000 annually to infrastructure improvements.

Councilmember Monin stated reasons for abstention and Councilmember Daniels objected for the reasons stated during discussion of Ordinance No. 1710.

Moved by de Freitas, seconded Starr, to adopt Resolution No. 2614, declaring the Council's intent regarding funds dedicated to fire services and declaring its intent that if voters approve annexation into SJC Fire Protection District No. 3 that the Town will dedicate the amounts currently contributed for fire service to capital infrastructure improvements to benefit the Town and its residents. Motion passed 3-1 with Daniels opposed and Monin abstained.

Ordinance No. 1711

At 12:45 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1711 concerning Chapter 15 FHMC. CDPD Director Ryan Ericson explained that the Ordinance adopts the 2018 edition and appendices of State Building and International Fire Codes. CDPD Director Ericson explained that the main focus of revisions involves energy codes such as window efficiency. No discussion followed.

Moved by Monin, seconded by Starr, to adopt Ordinance No. 1711, amending Chapter 15.04 FHMC to adopt the 2018 edition and appendices of State Building and International Fire Codes. Motion passed unanimously.

Resolution No. 2615

At 12:49 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2615 concerning the Mullis Street Improvement Project (818 Mullis to Spring RAB). Administrator Wilson explained that Konnerup Construction submitted the low responsive and qualified bid. The project engineer recommends award of the project. Discussion followed regarding bidding laws.

Moved by Monin, seconded by Starr, to adopt Resolution No. 2615, awarding the bid and authorizing the Mayor to execute a contract with Konnerup Construction in the amount of $759,199 for construction of the Mullis Street (818 Mullis to Spring RAB) Improvement Project. Motion passed unanimously.

Visitors Bureau – Scope of Work

At 12:55 p.m., Mayor Ghatan introduced discussion of the 2021 special scope of services for the Visitors Bureau. Administrator Wilson explained that Amendment No. 2 requires the approval of a new scope of prior to reimbursements. Town and the Visitors Bureau have negotiated an acceptable program for the year. The budget included unspent budget from year 2020. No discussion followed.

Moved by Starr, seconded by de Freitas, to approve Exhibit A and Exhibit B – 2021 Special Scope of Work for the agreement with the Visitors Bureau for tourism promotion. Motion passed unanimously. (See Resolution No. 2509 and subsequent amendments.)

ADMINISTRATOR'S REPORT

At 1:04 p.m., Administrator Wilson presented the Town Council with an update of the following:

- 2021 Arbor Day – Parks has proposed planting the pathway near Foxhall as part of its Arbor Day.
- Pedestrian Handrail – The vendor has requested a 50% deposit for the pedestrian handrail. Council concurred.
- WWTP Headworks Project – USDA has approved approximately $215,000 in changes orders as grant funding.
- Lampard Sidewalk Improvements – The engineering estimate for extension of sidewalk on Lampard from Hillcrest to Browne Street is $175,000.
- Low-Income Housing – SJC has been encouraged to follow through with the development of low-income housing on Malcom Street.
- PW Equipment – Town ordered a wood chipper for use in the Trout Lake Watershed. The cost was $37,000.
- WWTP Outfall Project – Town will issue the call for bid in October to comply with grant funding requirements.
- Spring Street Sewer Stormwater – Public Works is engineering the project.
- Systems Administration – The department was transferred to the Fire Department.
- COVID-19 Vaccination – SJC will begin issuing the next round of vaccinations on February 10, 2021.
- Stay Home, Stay Safe – The Health Department is urging that people not attend Superbowl parties.
- Front Street ROW – The Cask & Schooner has request to renew their license agreement for seating.
- Radar Speed Signage – Signage is now installed.
- Refuse Packer Truck – Town is looking into the cost of providing totes for consumers.
- Island Rec Levy – Town will hold a public hearing on February 18, 2021 to consider support of the levy proposal.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Hushebeck, to approve the Finance Department Agenda Items as enumerated below. Motion passed unanimously.

Finance Department Agenda – February 4, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47499-47540
- Amount: $173,549.72
- Dated: 02/04/2021

Approval of January 2021 Payroll Warrants

- Warrant Number: 17331-17340 and 01/29/2021 Direct Deposit
- ACH Number: 38-40
- Amount: $327,633.03
- Dated: 01/31/2021

Approval of January 2021 Treasurer Checks

- Check Number: 10031-10039
- Amount of Electronic Checks: 1
- Amount: $7,373.33
- Dated: January 2021

APPROVAL OF MINUTES

Moved by Starr, seconded by de Freitas, to approve the minutes of January 21, 2021 as submitted. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 2:05 p.m. The next regular meeting is scheduled for Thursday, February 18, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, February 18, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Pro-tem Hushebeck called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Anna Maria de Freitas (Position No. 3 and Barbara Starr (Position No. 5).

Noel Monin (Position No. 2), Tim Daniels (Position No. 4) and Mayor Farhad Ghatan were absent.

Others Present: Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

Council excused the absences of Councilmembers Monin and Daniels.

FLAG SALUTE

Mayor Pro-tem Hushebeck conducted the flag salute.

PUBLIC ACCESS TIME

No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

SJC Update

At 12:02 p.m., Mayor Pro-tem Hushebeck invited SJC Councilmember Christine Minney-Gabler to provide an update on issues of mutual concern. Councilmember Minney-Gabler discussed current COVID-19 response and vaccinations. Mayor Pro-tem Hushebeck thanked Ms. Minney-Gabler.

FHAC Appointment

At 12:08 p.m., Mayor Pro-tem Hushebeck introduced consideration appointing Jackie House, current non-voting member, to the unexpired term of Diane Martindale. The appointment of Ms. House is recommended by Mayor Ghatan, chair of the FHAC.

Moved by de Freitas, seconded by Starr, to affirm the appointment of Jackie House to a voting position. Motion passed 3-0 with Monin and Daniels absent.

PUBLIC HEARING

Island Rec - Proposition 1: 38.5¢ Levy

At 12:10 p.m., Mayor Pro-tem Hushebeck opened the public hearing to consider whether the Town Council should support Island Rec's proposition for a six year 38.5¢ per $1,000 of assessed valuation levy that will appear on the April 27, 2021 Special Election. Mayor Pro-tem Hushebeck explained that the hearing was legislative in nature.

Maddie Ovenell, Island Rec Director, provided an overview for the uses of funding, if approved. The wording submitted to the SJC Auditor and currently being reviewed by the Prosecuting Attorney for Proposition 1 will ask: Shall the San Juan Island Park & Recreation District be authorized to levy an annual property tax of $0.385 cents or less per $1,000 of assessed valuation for the six years.

Mayor Pro-tem Hushebeck opened the hearing to public testimony.

Allison Moalli, Board Commissioner, testified in support of the measure.

John Kurtz, School District 149 Commissioner, testified in support of the measure and explained that Island Rec has been vital to funding of school programs and facilities for San Juan Island.

Bill Cumming, Board Commissioner, testified in support of the measure and spoke to the importance of the District to our community.

Hearing no other testimony, Mayor Pro-tem Hushebeck opened the hearing to Council discussion.

Councilmembers Starr and de Freitas stated support of Proposition 1.

Discussion followed regarding broadening the Council's support of measures by junior taxing districts. Administrator Wilson stated that moving forward, future Propositions affecting Town would be added to the Council agenda for consideration.

At 12:15 p.m., Mayor Pro-tem Hushebeck closed the public hearing.

Resolution No. 2618

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2618, by the Town Council expressing support of Proposition 1 by the San Juan Island Parks and Recreation District on the April 27, 2021 Special Election. Motion passed 3-0 with Monin and Daniels absent.

Resolution No. 2616

At 12:21 p.m., Mayor Pro-tem Hushebeck introduced discussion of Resolution No. 2616 terminating an easement located at 330 Spring Street. Administrator Wilson explained that the owner provided a new comprehensive sewer utility easement across the property during the Elsworth Avenue Sewer Replacement Project. This termination of easement eliminates all other obsolete or prescriptive easements across the property. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2616, authorizing the termination of sewer utility easements at 330 Spring Street, Friday Harbor. Motion passed 3-0 with Monin and Daniels absent.

Resolution No. 2617

At 12:23 p.m., Mayor Pro-tem Hushebeck introduced discussion of Resolution No. 2617 concerning sidewalk repair. Administrator Wilson explained that Town utilized its small works roster for replacement of damaged sidewalk panels on West Street where aging, weather and tree roots have caused cracking and buckling. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2617, awarding the bid to Gull Wing Construction and authorizing the Mayor to execute an agreement for construction of the West Street Sidewalk Repair Project. Motion passed 3-0 with Monin and Daniels absent.

Resolution No. 2619

At 12:27 p.m., Mayor Pro-tem Hushebeck introduced discussion of Resolution No. 2619 concerning the Mullis Street (818 Mullis to Spring RAB) Reconstruction Project. Administrator Wilson explained that the supplemental agreement with Gray and Osborne Engineering is for construction management associated with the project. Public Works Director, Wayne Haefele, explained that Pedro Mena would act as Project Manager for day-to-day operations and inspection. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2619, authorizing the Mayor to execute Supplemental Agreement No. 1 with Gray and Osborne Engineering for construction management services on the Mullis Street (818 Mullis to Spring RAB) Reconstruction Project. Motion passed 3-0 with Monin and Daniels absent.

Lampard Sidewalk Proposal

At 12:34 p.m., Mayor Pro-tem Hushebeck introduced discussion of the Lampard Sidewalk Proposal. Public Works Director, Wayne Haefele presented a "scaled-back" estimate with redesigned 4-foot sidewalks (instead of 5-foot) from Hillcrest Place to Browne Street. Mr. Haefele explained that the new design has minimal tree loss. Council consensus that the sidewalk was necessary for pedestrian safety and to continue with final cost estimate for the redesigned 4-foot sidewalk.

Packer Truck Proposal

At 12:39 p.m., Mayor Pro-tem Hushebeck introduced discussion of the new Packer Truck Proposal. Administrator Wilson presented the final cost estimate for new refuse packer truck with side-arm loader in the amount of $290,225. No discussion followed.

Moved by de Freitas, seconded by Starr, to direct staff to move forward with Dobbs Truck Group - Bid Purchase Contract 60920 and 16873A in the amount of $290,225 for the purchase of the new refuse packer truck with side arm loader. Motion passed 3-0 with Monin and Daniels absent.

Administrator Wilson provided an update on the companion proposal to purchase appropriately sized totes for refuse customers. Town has been quoted approximately $96,000 for 1800 – 56-gallon totes. More information will be presented.

Spring Street Sewer & Storm Drain Replacement Project

At 12:47 p.m., Mayor Pro-tem Hushebeck introduced discussion of storm and sewer deficiencies on Spring Street. Administrator Wilson and Public Works Director Haefele presented the Council with an engineering estimate for replacement and requested that Town call for bids to complete the work in March 2021, before pandemic restrictions and tourist season arrive. The scope of work was described. Discussion followed regarding what, if any, repairs will be needed on Spring Street in the downtown core. Administrator Wilson explained that it was the last section requiring replacement.

Moved by de Freitas, seconded by Starr, to authorize the call-for-bids of the Spring Street Sewer and Storm Drain Replacement Project. Motion passed 3-0 with Monin and Daniels absent.

ADMINISTRATOR'S REPORT

At 1:00 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Sunken Park Mural – An update was given about the condition of the bird mural. Council was asked if they wanted to keep the current mural or seek an RFP for an entirely different installation. Town has asked the Artist to provide an estimate to restore the sun and weather damaged portions of the artwork that was only meant for a 5-year duration. Discussion followed regarding return on investment to have the Artist rehabilitate the piece rather than have a new installation either by the same or new artist. Council consensus to retain artwork in the park and seek cost estimates.
- Curbside Plastic Recycling Project – Town continues to work with SC Johnson Company on the pilot project for film recycling. At this time, only curbside pickup of single-family residential is considered.
- Snow removal – Town is considering purchase of plow and other snow removal equipment after this recent snow event. More information will be presented.
- Fiber-optic – Systems Administration presented a proposal for fiber connectivity between Town Hall, WWTP, Public Works and new Public Works Yard properties. Connectivity would eliminate the need for connectivity over the internet, which is largely dependent on the mainland. Council consensus to move forward with final project documents.

PAYMENT OF CLAIMS
Moved by de Freitas, seconded by Starr, to approve the Finance Department Agenda Items as enumerated below. Motion passed 3-0 with Monin and Daniels absent.

Finance Department Agenda – February 18, 2021
Approval of 2021 Claim Warrants

- Warrant Number: 47541-47588
- EFT Number: 2/17/2021 1-2
- Amount: $174,721.39
- Dated: 02/18/2021

APPROVAL OF MINUTES
Moved by Starr, seconded by de Freitas, to approve the minutes of January 21, 2021 as submitted. Motion passed 3-0 with Monin and Daniels absent.

FUTURE AND NON-AGENDA ITEMS
No future agenda items were forthcoming.

CITIZEN RESPONSE
No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Pro-tem Hushebeck adjourned the meeting at 1:34 p.m. The next regular meeting is scheduled for Thursday, March 4, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, March 4, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Others Present: Mayor, Farhad Ghatan; Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

SJC Update

At 12:04 p.m., SJC Councilmember Christine Minney-Gabler provided an update on issues of mutual concern. Topics included COVID-19 response and guest houses. Mayor Ghatan thanked Ms. Minney-Gabler.

Resolution No. 2620

At 12:04 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2620 concerning the First Street Overlay Project. Administrator Wilson explained that Town solicited proposals for design of the project as part of grant requirements. No discussion followed.

Moved by de Freitas, seconded by Monin, to adopt Resolution No. 2620, selecting Gray & Osborne Engineering to design the First Street Overlay Project. Motion passed 4-0 with Starr absent.

Resolution No 2621

At 12:10 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2621 concerning water valve replacement on SJ Valley Road. Public Works Director, Wayne Haefele explained that unexpected conditions were encountered during the work being performed in January. Town directed the Contractor to stop work for further evaluation after emergency repairs were completed. Discussion followed about logistics, including the water plant shutdown.

Moved by de Freitas, seconded by Hushebeck, to adopt Resolution No. 2621, authorizing the Mayor to execute a contract in the amount of $30,000 excluding sales tax, with Mike Carlson Enterprises for the replacement of certain water valves located on San Juan Valley Road. Motion passed unanimously.

Resolution No. 2622

At 12:16 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2622 concerning the Spring Street Sewer and Stormwater Replacement Project. Administrator Wilson explained that Town received 2 sealed bids after being duly advertised. The project consists of new sanitary sewer and storm drain on the alignment between First and Second Streets. The new section will complete upgrades from the waterfront to Argyle Avenue. Discussion followed regarding the significant difference in bid amounts.

Moved by Starr, seconded by Monin, adopting Resolution No. 2622, authorizing the Mayor to execute a unit price with a base bid contract amount of $413,187 excluding sales tax and additional contingency for unexpected subgrade conditions, with Mike Carlson Enterprises, Inc. for the construction of the Spring Street Sewer and Stormwater Replacement Project. Motion passed unanimously.

Resolution No. 2623

At 12:22 p.m., Mayor Ghatan introduced discussion of draft Resolution No.2623 the SBR System at the Wastewater Treatment Plant. Administrator Wilson explained that the Town only authorized $322,000 of the total design costs because the funding from Department of Ecology was limited, but Ecology has extended the loan and forgivable loan needed to complete the remainder of Tasks 1 through 7. Completion of Tasks 1 through 7 will require the Council to approve an additional $734,200 which is a portion of the approved Department of Ecology Loan/Forgivable Loan. Inquiry followed regarding interest rates. No discussion followed.

Moved by de Freitas, seconded by Starr, adopting Resolution No. 2623, authorizing the Mayor to execute Amendment No. 1 to the professional services agreement with Wilson Engineering, LLC entitled WWTP SBR Conversion and Biosolid Handling Design and Construction, to increase the budget by the amount of $734,200 to pay for Tasks 1 through 7. Motion passed unanimously.

Resolution No. 2624

At 12:28 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2624 the Outfall Project at the Wastewater Treatment Plant. Administrator Wilson explained that the Town needs to amend the existing scope of work to include Task No. 7, to create a preliminary Department of Natural Resources (DNR) lease survey and record of survey which is required for the outfall project. Said task is estimated to cost $10,000. Discussion followed that the project was growing in cost but also becoming significantly more environmentally friendly.

Moved by Hushebeck, seconded by de Freitas, authorized to execute Amendment No. 2 to the professional services agreement with Wilson Engineering, LLC to provide outfall improvements at the Wastewater Treatment Plant. Motion passed unanimously.

Ordinance No. 1712

At 12:36 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1712 concerning sewer main connections. Administrator Wilson explained that the Ordinance amends language in Section 13.20.070(B) to align with current practices for inspection of owner-installed side-sewer connections. No discussion followed.

Moved by Hushebeck, seconded by de Freitas, to adopt Ordinance No. 1712, amending Chapter 13.20 FHMC concerning inspection of owner-installed side-sewer connections. Motion passed unanimously.

Ordinance No. 1713

At 12:40 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1713 concerning sidewalk maintenance. Administrator Wilson explained that the Ordinance clarifies the liability and responsibility for sidewalk maintenance, citing snow removal and maintenance of planting strips. Discussion followed regarding the meaning of "liability" for deteriorating sidewalks. Administrator Wilson provided examples.

Moved by de Freitas, seconded by Monin, to adopt Ordinance No. 1713 amending Chapter 12.04 FHMC relating to responsibility for sidewalk maintenance and repair. Motion passed unanimously.

Ordinance No. 1714

At 12:55 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1714 concerning private use of the public right-of-way. Administrator Wilson explained that the purpose of the Ordinance is to modify current regulation and private use of public property to align with requests by the public to provide public benefits such as bistro-style dining in appropriate locations. The Ordinance also provides for additional requirements as may be deemed appropriate by administrative policy. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Ordinance No. 1714 amending Chapter 12.28 FHMC regulating private use of public property. Motion passed unanimously.

Resolution No. 2625

At 1:01 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2625 concerning private use of the public right-of-way. Administrator Wilson explained that the Resolution establishes additional requirements and fees for private use of the public right-of-way exceeding three days and/or for commercial purposes. Discussion followed regarding the policy.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2625 establishing an administrative policy for private use of the public right-of-way. Motion passed unanimously.

ADMINISTRATOR'S REPORT

At 1:14 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Smoots Alley – Council consensus to reimburse Councilmember de Freitas in the amount of $1,350 for thirty tons of crushed drain rock distributed to Smoots Alley side (Town ROW) of her stormwater project on Guard Street.
- Sewer Manhole Survey – Star Surveying has provided an estimate of $2000. Council consensus to move forward with the GIS location survey of sewer stormwater manholes.
- Mullis Street Improvement Project – The Project is on schedule to proceed.
- Hydro-geology Study – Town anticipates preliminary results by April.
- Critical Areas Ordinance – Town anticipates having a draft for circulation by end of March.
- 710 Guard Street – Town received an application for rezone.
- Graduation Banners – The PTA has requested graduation banners for class of 2021.
- First Street Pocket Park – Town will issue a CFB in April.
- Spring Street S/S Replacement Project – Wayne Haefele will perform construction inspection during the evening work.
- Lampard Sidewalk – The engineering for the project is almost complete.

PAYMENT OF CLAIMS

Moved by Monin, seconded by de Freitas, to approve the Finance Department Agenda Items as enumerated below. Motion passed unanimously.

Finance Department Agenda – March 4, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47589-47626
- Amount: $270,685.80
- Dated: 03/04/21

Approval of February 2021 Payroll Warrants

- Warrant Number: 17341-17350 and 02/28/2021 Direct Deposit
- ACH Number: 41-43
- Amount: $322,472.66
- Dated: 2/28/21

Approval of February 2021 Treasurer Checks

- Check Number: 10040-10045
- Amount of Electronic Checks: 1
- Amount: $4,761.54
- Dated: February 2021

APPROVAL OF MINUTES
Approval of minutes from February 18, 2021 were postponed until March 18, 2021.

FUTURE AND NON-AGENDA ITEMS
No future agenda items were forthcoming.

CITIZEN RESPONSE
No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:27 p.m. The next regular meeting is scheduled for Thursday, March 18, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, March 18, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3) and Barbara Starr (Position No. 5). Tim Daniels (Position No. 4) was absent.

The Council did not excuse the absence of Councilmember Daniels because he did not report that he would be absent.

Others Present: Mayor, Farhad Ghatan; Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
Deborah Hoskinson, Visitors Bureau Director, provided a destination marketing campaign update for 2021 Spring.

Councilmember Monin provided a Department of Health update.

ACTION AND DISCUSSION ITEMS

Whale Museum – H/M Funding Request

At 12:06 p.m., Mayor Ghatan introduced discussion of a request by the Whale Museum to reimburse a lodging tax request from year 2020. Administrator Wilson explained that the WM is requesting an exception to the January deadline for submission. Their new Finance Manage discovered an unmailed reimbursement request for e-marketing. No discussion followed.

Moved by de Freitas, seconded by Starr, to approve the request by the Whale Museum dated November 4, 2020 for $3,250 to reimburse e-marketing. Motion passed 4-0 with Daniels absent.

Argyle Avenue Housing Project

At 12:10 p.m., Mayor Ghatan introduced discussion of the County's housing project located off Argyle Avenue. Administrator Wilson described project goals to date. Discussion followed regarding density and diversity housing. No action was taken.

Resolution No. 2626

At 12:23 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2626 concerning the First Street Overlay Project. Pursuant to Resolution No. 2620, the Town and Gray & Osborne Engineering negotiated costs for design of the project based on their 2021 Fee Schedule. No discussion followed.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2626, authorizing the Mayor to execute an agreement with Gray & Osborne Engineering to design the First Street Overlay Project. Motion passed 4-0 with Daniels absent.

Resolution No. 2627

At 12:30 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2627 concerning road maintenance. Pursuant to the Town's invitation, the Contractor submitted a time and materials proposal of $11,000 to perform approximately 3,000 lineal feet of road and ditch maintenance around Trout Lake. Public Works Director, Wayne Haefele, suggested that "clean spoils" from PW projects be transported to the watershed for future road maintenance. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2627, authorizing the Mayor to execute a contract with MEM Enterprises for road maintenance in the Trout Lake Watershed. Motion passed 4-0 with Daniels absent.

Ordinance No. 1715

At 12:36 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1715 concerning refuse compactor rates. Administrator Wilson explained that Town has evaluated its costs and determined that a modest adjustment was necessary to recoup costs. No discussion followed.

Moved by Hushebeck, seconded by Starr, to adopt Ordinance No. 1715, amending portions of Chapter 13.28 FHMC relating to disposal rates for refuse compactors. Motion passed 4-0 with Daniels absent.

Spring Street Sewer Stormwater Drainage Project

At 12:36 p.m., Mayor Ghatan introduced discussion of the project. Administrator Wilson explained that Town has the opportunity to upsize the stormwater from 30" to 36" to create 40% more capacity. The cost for labor & materials are estimated at $21,000. Discussion followed regarding the size and capacity of the existing alignment.

Moved by de Freitas, seconded by Starr, to authorize staff to proceed with the appropriate paperwork for a change order to increase the capacity of the stormwater drain pipe for the Spring Street Sewer Stormwater Drainage Project. Motion passed 4-0 with Daniels absent.

ADMINISTRATOR'S REPORT

At 12:47 p.m., Administrator Wilson presented the Town Council with an update of the following:

- School District 149 – The School has requested to rent spaces for school bus storage when Town closes on 1000 Guard Street. The Council consensus to consider a proposal, so long as the use and space required does not impact Town operations.
- COVID-19 Recovery Funding – Town's share of recovery funding is estimated at $550,000.
- EDC Trades Program – The Town will recommend additional funding for 3 additional trades programs that will include hospitality, restaurant and daycare.
- Mullis Street Improvement Project – Council consensus for staff to prepare a Change Order to include additional pavement restoration on Mullis Street near 818 Mullis, the Market Street intersection and Spring Street intersection.
- Trout Lake Watershed – Town staff is doing an incredible job of removing the undergrowth for wildfire prevention in the watershed.
- Capital Improvement Index – Town will issue an article listing capital improvement accomplishments over last decade.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to approve the Finance Department Agenda of March 18, 2021 as follows. Motion passed 4-0 with Daniels absent.

Presented at Council Meeting: March 18, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47627-47671
- Amount: $119,780.75
- Dated: 03/18/21

APPROVAL OF MINUTES

Moved by Hushebeck, seconded by de Freitas, to approve the minutes of February 18th & March 4th, 2021 as submitted. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

EXECUTIVE SESSION

At 1:29 p.m., Mayor Ghatan announced that the Council would be holding an executive session regarding review of qualification for public employment in accordance with the provisions of RCW 42.30.110(1)(g); which was estimated to last 15 minutes. Participants: Town Council, Mayor Ghatan, Administrator Wilson, Treasurer Wilson, and Clerk Taylor. The session ended at 1:44 p.m. for an actual session time of 15 minutes. No actions were taken following executive session.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:45 p.m. The next regular meeting is scheduled for Thursday, April 1, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, April 1, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Others Present: Mayor, Farhad Ghatan; Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

Treasurer Wilson introduced Bethany Berry as the new hire Finance Director. Ms. Berry will take over the position effective May 10th.

ACTION AND DISCUSSION ITEMS

Town Wellness Program Annual Report

At 12:04 p.m., Mayor Ghatan welcomed Julie Greene, Wellness Coordinator, to provide an annual report on the Town's Wellness Program for employees. Topics included the insurance discount, new access requirements and new wellness committee. The Mayor and Council thanked Ms. Greene. No action was taken.

Friday Harbor Arts Commission Annual Report

At 12:10 p.m., Mayor Ghatan welcomed Julie Greene, FHAC Coordinator, to provide an annual report for the Friday Harbor Arts Commission. Topics included new members and current projects. The Mayor and Council thanked Ms. Greene. No action was taken.

Critical Areas Ordinance Update

At 12:28 p.m., Mayor Ghatan invited Ryan Ericson, CDPD Director, to provide an update on the Critical Areas Ordinance. Mr. Ericson explained that the Planning Commission is reviewing the ordinance amendments on an expedited schedule to get the Town in compliance with the Department of Ecology. Discussion followed regarding upcoming work. The Mayor and Council thanked Mr. Ericson. No action was taken.

Resolution No. 2628

At 12:35 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2628 concerning lease of public right of way. Administrator Wilson explained that the business has requested the same lease area as prior years. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2628, a request for lease of public right-of-way on Front Street for outdoor seating & installation of temporary structures by Cask & Schooner. Motion passed unanimously.

Resolution No. 2629

At 12:38 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2629 concerning the Comprehensive Water System Plan. Public Works Director Wayne Haefele explained that additional modeling can enhance the level of fidelity and comprehensive assessment of certain locations such as the treatment plant, airport and marinas. Discussion followed regarding using the modeling to determine line leakage.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2629 authorizing Amendment No. 1 with Brown & Caldwell for updates to the Comprehensive Water System Plan. Motion passed unanimously.

Mullis Street Improvement Project

At 12:44 p.m., Mayor Ghatan introduced discussion of the Mullis Street Improvement Project. Pedro Mena, Project Manager, reviewed the construction schedule and updated the Council on unexpected conditions that will require additional change orders. Discussion followed regarding detours. No action was taken.

Resolution No. 2630

A 12:52 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2630 concerning the Mullis Street Improvement Project. Administrator Wilson presented Change Order Nos. 1 & 2 for additional pavement restoration. No discussion followed.

Moved by Hushebeck, seconded by Starr, to adopt Resolution No. 2630 authorizing Change Order No. 1 & Change Order No. 2 for additional pavement restoration on the Mullis Street Improvement Project. Motion passed unanimously.

Resolution No. 2631

At 12:54 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2631 concerning legal services. Administrator Wilson explained that legal counsel is still required for review of construction claims and ongoing litigation. No discussion followed.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2631 authorizing Amendment No. 4 to the legal services agreement for construction claims related to Tucker Avenue Reconstruction Project, Phase 2. Motion passed unanimously.

Resolution No. 2632

At 1:11 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2632 concerning the West Street Sidewalk Project. Administrator Wilson explained that the project has been inspected and reconciled. No discussion followed.

Moved by Hushebeck, seconded by de Freitas, to adopt Resolution No. 2632 authorizing Change Order No. 1 and accepting the West Street Sidewalk Project. Motion passed unanimously.

Resolution No. 2634

At 1:01 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2634 concerning Zylstra Lake. Administrator Wilson explained that the County is applying for State Community Project Funding. A resolution of support is recommended. Discussion followed regarding the need for easements.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2634 supporting the Community Project Funding request for a continuous non-motorized trail from the Town of Friday Harbor to the Zylstra Lake Preserve. Motion passed unanimously.

AV Captureall

At 1:15 p.m., Mayor Ghatan introduced discussion of the AV system in the Town Council Chambers. Staff presented a proposal to update audio visual system & equipment in the Council Chambers for improved public access. The system recommended is Zoom Meetings with a minimal AV package. Council consensus to finalize a proposal.

ADMINISTRATOR'S REPORT

At 1:27 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Capital Improvements – Town will issue a press release regarding the large Town capital improvement project completed this past 10 years.
- FH Landfill – The site requires pavement restoration. More information will be presented.
- Annual Audit – The SAO will be conducting the annual audit in April.
- Pickle Ball Court – A local group is requesting additional courts.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to authorize Claims and Warrants as stated below. Motion passed unanimously.

Presented at Council Meeting: April 1, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47672-47717
- Amount: $189,476.59
- Dated: 04/01/2021

Approval of 2021 March Payroll Warrants

- Warrant Number: 17351-17362 and 03/31/2021 Direct Deposit
- ACH Number: 44-46
- Amount: $359,917.88
- Dated: 03/31/2021

Approval of 2021 March Treasurer Checks

- Check Number: 10046-10058
- Amount of Electronic Checks: 1
- Amount: $82,407.00
- Dated: March 2021

APPROVAL OF MINUTES

Moved by de Freitas, seconded by Starr, to approve the minutes of March 18, 2021 as submitted. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS

Councilmember Monin provided a SJC Board of Health update.

CITIZEN RESPONSE

No citizen response was forthcoming.

EXECUTIVE SESSION

At 2:02 p.m., Mayor Ghatan announced that the Council would be holding an executive session regarding qualifications for employment in accordance with the provisions of RCW 42.30.110(1)(g); which was estimated to last 20 minutes. Participants: Town Council, Mayor Ghatan and Administrator Wilson. Council required and the public was notified of a 20-minute extension. The session ended at 2:42 p.m. for an actual session time of 40 minutes. No actions were taken following executive session.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 2:43 p.m. The next regular meeting is scheduled for Thursday, April 15, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, April 15, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Others Present: Mayor, Farhad Ghatan; Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

Deborah Hoskinson, Visitors Bureau Director, updated the Council on the upcoming Spring marketing campaign.

ACTION AND DISCUSSION ITEMS

Arbor Day Proclamation

At 12:05 p.m., Mayor Ghatan proclaimed April 15, 2021 Arbor Day in Friday Harbor and announced the winners of the Arbor Day Poster Contest for Grades K-5.

Economic Development Council

At 12:06 p.m., Mayor Ghatan invited Victoria Compton, EDC Director to make a presentation. Ms. Compton provided an update on local Covid-19 recovery and the trades program. Administrator Wilson noted the inclusion of hospitality training in the upcoming curriculum. No discussion followed.

Spring Street Sewer Stormwater Replacement Project

At 12:35 p.m., Mayor Ghatan introduced Wayne Haefele, PW Director, to provide an update on the Spring Street Sewer Stormwater Replacement Project. Director Haefele indicated that the evening work was progressing with few conflicts. Director Haefele recommended replacement of certain sewer laterals and a portion of existing sidewalk. Council consensus to proceed with the work and present a change order.

FH Urban Growth Area

At 12:52 p.m., Mayor Ghatan introduced discussion of the County's memo for SJC Comprehensive Plan review of land use requests and proposals for certain parcels to be included in the new Friday Harbor Urban Growth Area. Ryan Ericson, CDPD Director, presented the memo and described parcels that would be included in the FHUGA. Discussion followed regarding the area located south of Town near Argyle Avenue. Council consensus of non-opposition to the proposed 2021 Friday Harbor Urban Growth Area.

Community Development Update

At 12:55 p.m., Ryan Ericson, CDPD Director provided an update on recent work of the department and Planning Commission. Topics included the Critical Areas Ordinance, Browne's Nursery and other ordinance updates. No action was taken.

Rezone Application No. 75

At 1:17 p.m., Mayor Ghatan introduced discussion of the Findings of Fact and Conclusions of Law for Rezone Application No. 75. Ryan Ericson, CDPD Director presented the FFCOL. No discussion followed.

Moved by de Freitas, seconded by Hushebeck, to adopt the FFCOL for Rezone Application No. 75. Motion passed unanimously.

Ordinance No. 1717

Moved by de Freitas, seconded by Monin, to adopt Ordinance No. 1717, amending the Zoning Designation Map and approving Rezone Application No. 75. Motion passed unanimously.

SJC Housing Commission

At 1:25 p.m., Mayor Ghatan provided an update on the work of the SJC Housing Commission. No discussion followed. No action was taken.

Stormwater Redemption Bonds

At 1:28 p.m., Mayor Ghatan introduced discussion of the stormwater redemption bond. Administrator Wilson and Treasurer Wilson explained that $355,000 is currently owed and the Town currently has the funds to pay off the interest-bearing account. Discussion followed. **Council consensus to proceed with paying off and retiring the account.**

Resolution No. 2633

At 1:34 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2633 concerning installation of fiber optic conduit between Town facilities. Mike Greene, Systems Administrator, explained that after evaluation the bid would likely cost approximately $100,000 due to prevailing wage laws. No discussion followed.

Moved by de Freitas, seconded by Monin, to adopt Resolution No. 2633, awarding a bid for the Fiber Optic Conduit Installation Project to Kings Excavating. Motion passed unanimously.

Resolution No. 2635

At 1:41 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2635 concerning a policy for employee recognition and retirement. Town does not currently have an established policy. No discussion followed.

Moved by Hushebeck, seconded by Starr, to adopt Resolution No. 2635, establishing a policy for employee recognition and retirement programs. Motion passed unanimously.

Resolution No. 2636

At 1:42 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2636 accepting the SJ Valley Road Water Valve Replacement Project. Administrator Wilson explained that the project has been completed and reconciled. No discussion followed.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2636, accepting the SJ Valley Road Water Valve Replacement Project. Motion passed unanimously.

Ordinance No. 1716

At 1:43 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1716, fixing salary for the Town Finance Director. Administrator Wilson presented the salary ordinance. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Ordinance No. 1716, fixing salary for the Town Finance Director. Motion passed unanimously.

ADMINISTRATOR'S REPORT

At 1:45 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Mullis Street Improvement Project – Cement treated base is complete. Asphalt is scheduled the week of April 19th.
- Special April 27th Election – The special election for the annexation is coming up.
- Fourth of July Holiday Weekend – Fireworks are scheduled however the parade is undetermined at this point in time.
- Covid-19 – Several staff are under quarantine following an off-island school sports event.
- CIP / 6YTIP – Town will present the draft documents in May.
- 1000 Guard Street – The property transaction is nearly complete.

- Nuisance Waste – An ordinance will be presented to address loose animal waste in trash.
- Graduation Banners – Class banners for 2021 have been ordered.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to approve claims and warrants as stated below. Motion passed unanimously.

Presented at Council Meeting: April 15, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47719-47775 and EFT 1-2
- Amount: $137,013.46
- Dated: 04/15/2021

Approval of 2021 Pre-Write Claim Warrant

- Warrant Number: 47718
- Amount: $9,600.00
- Dated: 04/07/2021

APPROVAL OF MINUTES

The approval of the minutes of April 1, 2021 were postponed until May 6, 2021.

FUTURE AND NON-AGENDA ITEMS

Councilmember Hushebeck requested that evaluating the current ordinance for vacation rental.

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 2:02 p.m. The next regular meeting is scheduled for Thursday, May 6, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, May 6, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), and Barbara Starr (Position No. 5). Tim Daniels (Position No. 4) was absent.

Others Present: Mayor, Farhad Ghatan; Treasurer, Kelle' Wilson; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

The Council excused the absence of Councilmember Daniels.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

SJC Update

At 12:02 p.m., Mayor Ghatan introduced SJC Councilmember, Christine Minney to provide an update on issues of mutual concern. Topics included the proposed Town to Zylstra Lake Pedestrian Path, April 2021 special election and sidewalk improvements on Argyle Avenue. The Mayor thanked Ms. Minney.

Proclamation – Kelle' Wilson

At 12:05 p.m., Mayor Ghatan proclaimed Kelle' Wilson Day in the Town of Friday Harbor in Honor of Treasurer Wilsons retirement and last meeting as elected Town Treasurer.

Proclamation – Clerk's Week

At 12:08 p.m., Mayor Ghatan proclaimed Municipal Clerk's Week in the Town of Friday Harbor.

Historic Preservation Month

At 12:11 p.m., Mayor Ghatan introduced Sandy Strehlou, Historic Preservation Coordinator to speak about Historic Preservation Month. Ms. Strehlou described Town sponsored events for the month of May.

Ordinance No. 1718

At 12:15 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1718 concerning membership of the Historic Preservation Review Board. Sandy Strehlou, Historic Preservation Coordinator, explained that the HPRB has qualified candidates for the two recent vacancies, however membership requires that the HPRB have one sitting member residing in the Town. Ms. Strehlou requested to amend that requirement. Discussion followed regarding giving deference to Town residents.

Moved by Monin, seconded by Starr, to adopt Ordinance No. 1718, amending Chapter 2.58 FHMC regarding membership of the HPRB. Motion passed 4-0 with Daniels absent.

HPRB Appointments

Concurrently with Ordinance No. 1718, Mayor Ghatan opened discussion of member appointments.

Moved by Starr, seconded by de Freitas, to affirm the appointments of Nadine Cook and Ron Loya to the Historic Preservation Review Board. Motion passed 4-0 with Daniels absent.

Blair Mural

At 12:29 p.m., Mayor Ghatan introduced discussion of the Blair Street Mural. Julie Greene, Friday Harbor Arts Commission Coordinator, presented the recommendation of the FHAC to select the company known as Bennet and Fisher for installation of the artwork. Discussion followed regarding the piece.

Moved by Starr, seconded by de Freitas, to accept the art proposal from Bennett and Fisher for installation the Blair Street Mural, contingent that the Artist visits the site the confirm the wall is in acceptable condition for installation of product. Motion passed 4-0 with Daniels absent.

Resolution No. 2637

At 12:38 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2637 concerning the Mullis Street Improvement Project. Pedro Mena, Project Manager, described Change Order Nos. 3 thru 5. No discussion followed.

Moved by Monin, seconded by Starr, to adopt Resolution No. 2637, authorizing the Mayor to execute Change Order Nos. 3 through 5 for the Mullis Street Improvement Project. Motion passed 4-0 with Daniels absent.

Resolution No. 2638

At 12:45 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2638 concerning the new Public Works Yard. Administrator Wilson explained that the transaction for purchase of 1000 Guard Street is complete and SJC wishes to exercise its option to lease the property back from the Town until it is able to cease operations and fully vacate at the site. The vacancy date is planned for November 2021. Discussion followed regarding fair market value of the site.

Moved by ___, seconded by ___, to adopt Resolution No. 2638, authorizing the Mayor to execute a lease agreement with San Juan County for use of 1000 Guard Street, Friday Harbor. Motion passed 4-0 with Daniels absent.

Resolution No. 2639

At 12:47 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2639 concerning street sweeping services. Administrator Wilson explained that the County has submitted its annual request for mutual assistance. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2639, authorizing the Request for Interlocal Services No. 8 between the Town and County for annual street sweeping. Motion passed 4-0 with Daniels absent.

Resolution No. 2640

At 12:48 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2640 concerning investment of Town monies. Administrator Wilson explained that with Treasurer Wilson's departure, the Town needs to grant access to the Local Government Investment Pool and authorize Bethany Berry to transfer funds within accounts. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2640, authorizing investment of Town monies in the LGIP. Motion passed 4-0 with Daniels absent.

Ordinance No. 1719

At 12:51 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1719 concerning definitions for solid waste. Administrator Wilson explained that the ordinance amends the definition of nuisance waste to include proper disposal of animal fecal matter. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Ordinance No. 1719, amending portions of Chapter 13.28 FHMC relating to disposal of nuisance waste. Motion passed 4-0 with Daniels absent.

Critical Areas Ordinance

At 12:53 p.m., Mayor Ghatan introduced Ryan Erickson, CDPD Director to provide an update on the Planning Commission's work plan. Mr. Erickson described proposed amendments for the Critical Areas Ordinance. No action was taken.

ADMINISTRATOR'S REPORT

At 1:00 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Fire Annexation – Town has successfully be annexed into Fire District 3.
- Hydrogeologic Study – Preliminary results indicate that the Finnegan Ridge development is contributing to the stormwater issues located below Perry Place. The Engineer will forward final recommendations.
- Spring Street Sewer Stormwater Project – Sidewalk has been poured and asphalt is scheduled for May 10th.
- Resolution No. 2641 – **Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2641, approving the proposal by MTC, Inc. for materials testing on Spring Street. Motion passed 4-0 with Daniels absent.**
- Six Year Transportation Improvement Plan / Capital Improvement Plan – Town will hold its public hearing on June 3, 2021.
- Got Junk Spring Cleanup – Town collect approximately 18 tons.
- Graduation Banners – The graduation banners have been ordered for the class of 2021.
- Planning Commission – **Moved by Hushebeck, seconded by Monin, to affirm the appointment of Patrick Minney to the vacant position on the Planning Commission. Motion passed 4-0 with Daniels absent.**

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to approve claims and payroll as listed below. Motion passed 4-0 with Daniels absent.

Finance Department Agenda Items

Presented at Council Meeting: May 6, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47778-47835
- Amount: $1,052,367.38
- Dated: 05/06/21

Payment of 04/15/21 Pre-write Claim Warrants

- Approved by Hushebeck, Monin, and de Freitas on 04/15/21
- Reason: Konnerup Construction Payment Request was missed in the prior claims period due to documentation not making it to the Finance department.
- Warrant Number: 47776-47777
- Amount: $74,605.00
- Dated: 04/15/21

Approval of April 2021 Payroll Warrants

- Warrant Number: 17363-17372 and 04/30/2021 Direct Deposit
- ACH Number: 47-49
- Amount: $342,500.76
- Dated: 04/30/21

APPROVAL OF MINUTES
Moved by de Freitas, seconded by Hushebeck, to approve the minutes of April 1st and April 15th, 2021 as submitted. Motion passed 4-0 with Daniels absent.

FUTURE AND NON-AGENDA ITEMS
The Council, Mayor & Administrator Wilson thanked Treasurer Wilson and congratulated

CITIZEN RESPONSE
No citizen response was forthcoming.

EXECUTIVE SESSION
At 1:21 p.m., Mayor Ghatan announced that the Council would be holding an executive session regarding qualifications for employment in accordance with the provisions of RCW 42.30.110(1)(g); which was estimated to last 30 minutes. Participants: Town Council, Mayor Ghatan and Administrator Wilson. The session ended at 1:54 p.m. for an actual session time of 33 minutes. No actions were taken following executive session.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:54 p.m. The next regular meeting is scheduled for Thursday, May 20, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, May 20, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Others Present: Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

2021 Tourism Promotion Program

At 12:03 p.m., Mayor Ghatan introduced discussion of the 2021 Hotel Motel Grant allocation for tourism promotion programs. Administrator Wilson recommended that Council set a preliminary grant allocation of up to $50,000 from the 2nd 2% H/M fund. Discussion followed regarding allocation of more from fund reserves.

Moved by Monin, seconded by Starr, to authorized a preliminary allocation of $50,000 from the 2nd 2% H/M Fund for the 2022 Tourism Grant Program. Motion passed unanimously.

Resolution No. 2642

At 12:08 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2642 concerning John O. Linde Community Park. The current amendment for limited amplified sound sunsets on June 30, 2021. No issues regarding amplified sound have been reported to the Town to date. Island Rec is requesting Amendment No. 4 to continue the use of limited amplified sound during sanctioned events. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No. 2642, approving the request to use limited amplified sound during sanctioned sporting events through June 30, 2023; and to "approve to form", Amendment No. 4 of the operations and maintenance agreement. Motion passed unanimously.

Resolution No 2643

At 12:11 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2643 concerning a policy for public works equipment. The policy establishes rental rates and allowable uses. No discussion followed.

Moved by Hushebeck, seconded by de Freitas, to adopt Resolution No. 2643, adopting a usage policy, rental rates for Town public works equipment and billable rates for Town personnel. Motion passed unanimously.

Capital Improvement Plan

At 12:13 p.m., Mayor Ghatan introduced discussion of the Capital Improvement Plan and Six Year Transportation Improvement Plan. Administrator Wilson described line items of interest. Public hearings are scheduled in June for adoption of the plans. No action was taken.

ADMINISTRATOR'S REPORT

At 12:41 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Town Council Chambers – Town has purchased equipment upgrades and will transition to Zoom Meetings in June 2021.
- Construction Updates – The current projects on Spring Street and Mullis Street are nearly complete. Both contractors are in the final stages.
- FH Highschool Senior Banner – Are delivered and being hung around Town.
- Agenda – The Critical Areas Ordinance and information for Accessory Dwelling Units will be presented June 3, 2021.
- Pickleball Courts – Island Rec may request an amendment to the conditional use permit for Linde O. Fields. There is community interest in developing multiple pickleball courts.
- 770 Argyle Avenue – The driveway for the parcel is actually located on Cahail Park property. The Owner is requesting a permanent easement. The Council concurred that it is not interested in a permanent easement, however they are open to other solutions.

- Tucker Avenue Reconstruction Project, Phase 2 – The hearing date for litigation is scheduled in October 2021.
- First Street Pocket Park – A call for bid has been issued. Award is tentatively scheduled June 3, 2021.

PAYMENT OF CLAIMS

Moved by Monin, seconded by de Freitas, to approve the payment of warrants as stated below. Motion passed unanimously.

Finance Department Agenda Items
Presented at Council Meeting: May 20, 2021

Approval of 2021 Claim Warrants
- Warrant Number: 47836-47897
- ACH Number: EFT 1-2
- Amount: $233,099.19
- Dated: 05/20/21

Approval of April 2021 Treasurer Checks
- Warrant Number: 10059-10077
- ACH Payments: 4
- Amount: $694,141.44
- Dated: April 2021

APPROVAL OF MINUTES

Moved by de Freitas, seconded by Starr, to approve the minutes of May 6, 2021 as submitted. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:05 p.m. The next regular meeting is scheduled for Thursday, June 3, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, June 3, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

Nancy Jones, 255 Harrison Street, complimented the Streets Crew, especially Allan Brown, for their hard work in keeping the Town looking clean.

PUBLIC HEARING

Six Year Transportation Improvement Plan

At 12:04 p.m., Mayor Ghatan opened the public hearing for consideration of the Six Year Transportation Improvement Plan for years 2022-2027. Administrator Wilson outlined projects listed on the plan. Mayor Ghatan opened the hearing for public comment. Hearing none, Mayor Ghatan closed the public hearing. No discussion followed.

Resolution No. 2644

Moved by Hushebeck, seconded by Monin, to adopt Resolution No. 2644, providing for a Six Year Transportation Improvement Plan for years 2022-2027. Motion passed unanimously.

ACTION AND DISCUSSION ITEMS

Critical Areas Ordinance - FFCOL

At 12:07 p.m., Mayor Ghatan introduced discussion of Findings of Fact and Conclusions of Law by the Planning Commission regarding the 2021 Critical Areas Ordinance Update. CDPD Director Ryan Erickson summarized findings. No discussion followed.

Moved by Hushebeck, seconded by de Freitas, to adopt Findings of Fact, Conclusions of Law and Recommendation by the Planning Commission for the 2021 Critical Areas Ordinance Update. Motion passed unanimously.

Ordinance No. 1720

At 12:13 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1720 regarding updates to the Critical Areas Ordinance. CDPD Director Ryan Erickson summarized the process. No discussion followed.

Moved by de Freitas, seconded by Hushebeck, to adopt Ordinance No. 1720, adopting Critical Areas Ordinance updates for the Town of Friday Harbor. Motion passed unanimously.

Ordinance No. 1721

At 12:14 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1721 concerning accessory dwelling units. CDPD Director Ryan Ericson explained that the intent of the interim ordinance is to provide for limited attached accessory dwelling units while the Planning Commission develops long-term regulations in the upcoming months. Discussion followed regarding illegal dwellings and submetering of new ADUs. Council consensus to remove the requirement of submetering attached accessory dwelling units and other ordinance language.

Moved by Starr, seconded by de Freitas, to adopt Interim Ordinance No. 1721, as revised, adopting interim zoning development regulations for converting existing structures to attached accessory dwelling units. Motion passed unanimously.

Ordinance No. 1722

At 12:44 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1722 concerning binding site plans. CDPD Director Ryan Ericson explained the benefits of utilizing a binding site plan procedure. A binding site plan is an alternative land division procedure to the plat, subdivision and dedication procedures. The Planning Commission has been with developing permanent procedures. Discussion followed regarding the ability to condominiumized under binding site plans.

Moved by de Freitas, seconded by Starr, to adopt Interim Ordinance No. 1722, adopting procedures for the divisions of land by use of a binding site plan as an alternative to procedures for plats, subdivision and dedication. Motion passed unanimously.

Shoreline Master Plan

At 12:51 p.m., Mayor Ghatan introduced discussion of the Shoreline Master Plan. CDPD Director Ryan Ericson provided an update on the Planning Commission's progress. No discussion followed. No action was taken.

ADMINISTRATOR'S REPORT

At 12:53 p.m., Administrator Wilson presented the Town Council with an update of the following:

- First Street Pocket Park – No bids were received for the First Street Pocket Park. Town will rebid the project in August.
- Parade – The SJI Chamber is attempting to organize a parade for Fourth of July.
- Town Crew – The Water and Sewer Department are experiencing staffing issues. Administrator is attempting to restructure.

PAYMENT OF CLAIMS

Moved by Monin, seconded by de Freitas, to affirm the payment of Payroll Warrants and approve Claim Warrants and Treasurer Checks as enumerated below. Motion passed unanimously.

Presented at Council Meeting: June 3, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47898-47941
- ACH Number:
- Amount: $552,873.83
- Dated: 06/03/21

Approval of May 2021 Payroll Warrants

- Warrant Number: 17373-17382 and 5/31/21 Deposit Run
- ACH Number: 50-52
- Amount: $374,048.52
- Dated: 05/31/21

Approval of May 2021 Treasurer Checks

- Warrant Number: 10078-10080 and 10112-10122
- Amount: $202,999.98
- ACH Payments: 2
- Dated: May 2021

APPROVAL OF MINUTES

Moved by Starr, seconded by de Freitas, to approve the minutes of May 20, 2021 as submitted. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

EXECUTIVE SESSION

At 1:05 p.m., Mayor Ghatan announced that the Council would be holding an executive session regarding qualifications for public employment in accordance with the provisions of RCW 42.30.110(1)(g); which was estimated to last 20 minutes. Participants: Town Council, Mayor Ghatan and Administrator Wilson. The session ended at 1:25 p.m. for an actual session time of 20 minutes. No actions were taken following executive session.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:26 p.m. The next regular meeting is scheduled for Thursday, June 17, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, June 17, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5). Noel Monin (Position No. 2) was absent.

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

The absence of Councilmember Monin was excused.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

SJC Board of Health

At 12:04 p.m., Mayor Ghatan introduced Mark Tompkins to provide an update on Restarting Safe Washington. Mr. Tompkins summarized recent COVID restrictions, unmasking and reopening mandates. The Governor will reopen The Council thanked Mr. Tompkins. No action was taken.

Resolution No. 2645

At 12:26 p.m., Mayor Ghatan introduced discussion of Resolution No. 2645 concerning the Mullis Street Improvement Project. Project Manager, Pedro Mena, explained that Change Order No. 6 reconciles final contact amounts for labor and materials. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2645, authorizing Change Order No. 6 for the Mullis Street Improvement Project (818 Mullis to Spring Street). Motion passed 4-0 with Monin absent.

Resolution No. 2646

At 12:27 p.m., Mayor Ghatan introduced discussion of Resolution No. 2646 concerning the Spring Street Sewer & Stormwater Replacement Project. Public Works Director, Wayne Haefele, explained that Change Order Nos. 1-2 reconciles final contract amounts for labor and materials for additional work ordered by the Town, including the additional sidewalk and accepts the project. Discussion followed regarding the sidewalk planters and benches.

Moved by Hushebeck, seconded by de Freitas, to adopt Resolution No. 2646, authorizing Change Order Nos. 1-2 and accepting the Spring Street Sewer Stormwater Reconstruction Project. Motion passed 4-0 with Monin absent.

Resolution No. 2647

At 12:33 p.m., Mayor Ghatan introduced discussion of Resolution No. 2647 concerning selection of engineers. Administrator Wilson explained that the resolution corrects deficiencies in our current procedures that were identified by the State Auditor. No discussion followed.

Moved by Starr, seconded by Hushebeck, to adopt Resolution No. 2647, selecting engineering firms for architectural and engineering services. Motion passed 4-0 with Monin absent.

Resolution No. 2648

At 12:36 p.m., Mayor Ghatan introduced discussion of Resolution No. 2648 concerning the Sewer Outfall Replacement Construction. Administrator Wilson explained that the resolution authorized the forgivable loan funding offered through the Water Quality Combined Financial Assistance Program to construct the new sewer outfall for the Wastewater Treatment Plant. Discussion followed regarding the payment of interest on the loan.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2648, authorizing a forgivable loan (WQC-2021-FriHar-00211) with the Department of Ecology for the Sewer Outfall Replacement Construction. Motion passed 4-0 with Monin absent.

Resolution No. 2649

In conjunction with Resolution No. 2648, Mayor Ghatan introduced discussion of Resolution No. 2649 concerning Wastewater Treatment Plant Upgrades. No discussion followed.

Moved by Hushebeck, seconded by Starr, to adopt Resolution No. 2649, authorizing a forgivable loan (WQC-2021-FriHar-00212) with the Department of Ecology for Water Treatment Plant Upgrades. Motion passed 4-0 with Monin absent.

Resolution No. 2650

At 12:46 p.m., Mayor Ghatan introduced discussion of Resolution No. 2650 concerning an employment agreement for Town Administrator. Administrator Wilson explained that the agreement was to affirm the terms and conditions for at-will employment of Michael Thomas to assume the position of Town Administrator upon Duncan Wilson's retirement. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2650, authorizing an employment agreement with Michael Thomas for the position of Town Administrator. Motion passed 4-0 with Monin absent.

Ordinance No. 1723

At 12:53 p.m., Mayor Ghatan introduced discussion of Ordinance No. 1723 concerning refuse containers. Administrator Wilson explained that customers are overfilling garbage cans. The ordinance reduces the allowable weight from 65 to 45 pounds for the health and safety of staff. Discussion followed regarding how the ordinance could be enforced.

Moved by Hushebeck, seconded by Starr, to adopt Ordinance No. 1723, amending Chapter 13.28 FHMC relating to refuse container weight. Motion passed 4-0 with Monin absent.

Ordinance No. 1724

At 12:55 p.m., Mayor Ghatan introduced discussion of Ordinance No. 1724 concerning Chapter 17 Land Use. Administrator Wilson explained that the ordinance restructures Chapter 17.08 into alpha-numeric sequence by section (Letters A-Z) and recodifies existing definitions. Currently, each definition has an individual section listed as Sections 17.08.010 through 17.08.700. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Ordinance No. 1724, amending Chapter 17.08 FHMC regarding land use definitions. Motion passed 4-0 with Monin absent.

Ordinance No. 1725

At 1:01 p.m., Mayor Ghatan introduced discussion of Ordinance No. 1725 concerning the interim attached accessory dwelling units. Administrator Wilson explained that the original ordinance used the term "footprint". After further review, staff found the term ambiguous and recommends changing the term to "bulk dimensions" to preserve the intention of the interim ordinance. Discussion followed regarding future regulations.

Moved by Starr, seconded by Hushebeck, to adopt Ordinance No. 1725, amending Ordinance No. 1721 concerning interim regulations for attached accessory dwelling units. Motion passed 4-0 with Monin absent.

Ordinance No. 1726

At 1:12 p.m., Mayor Ghatan introduced discussion of Ordinance No. 1726 concerning salary. Administrator Wilson explained that CDPD Director Ryan Ericson completed his 6-month probationary period. A $3,000 annual salary increase is recommended. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Ordinance No. 1726, fixing the salary for the Community Development and Planning Director and amending Ordinance No. 1707. Motion passed 4-0 with Monin absent.

ADMINISTRATOR'S REPORT

At 1:15 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Stormwater Event – Town experience another 100-year event and looking to solve some of the overflow issues in the secondary mains.
- AV Equipment & In-person Meetings – The new system has arrived and the Council needs to discuss when they would like to resume in-person meetings.
- Stormwater Bond – Town retired the remaining bond with existing reserves, thereby saving 6% in interest.
- 4th July Parade – The SJI Chamber and its partners are planning a smaller parade for 2021. The event will begin at 11:30 a.m.
- Utility Rate Study – FCS Group is nearly complete with the new rate study.
- Student Banners – The new graduate banners have been hung. Town hopes it will become tradition.

PAYMENT OF CLAIMS

Moved by de Freitas, seconded by Starr, to adopt the Finance Department Agenda as enumerated below. Motion passed 4-0 with Monin absent.

Finance Department Agenda Items

Presented at Council Meeting: June 17, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47942-47989
- ACH Number: EFT 1-2
- Amount: $234,462.95
- Dated: 06/17/21

Payment of May 2021 Revised Treasurer Checks

- Previously approved at the 06/03/2021 council meeting in the amount of $202,999.98.
- Revision includes an updated amount for check no. 10078: $21,903.88, previously $21,903.78.
- Check Number: 10078-10080, 10112-10122
- Amount of Electronic Checks: 2
- Amount: $203,000.98
- Dated: May 2021

APPROVAL OF MINUTES

Approval of minutes postponed until July 1, 2021.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:37 p.m. The next regular meeting is scheduled for Thursday, July 1, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, July 1, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
No public access was forthcoming.

ACTION AND DISCUSSION ITEMS
Sheriff's Report

At 12:02 p.m., Mayor Ghatan welcomed Sheriff Ron Krebs to provide a quarterly update. Sheriff Krebs reported that quarterly statistics are average for the quarter and discussed new legislation (WA Supreme Court - State vs. Blake) that will affect local law enforcement for drug related offenses. The Mayor and Council thanked Sheriff Krebs.

SJI Chamber of Commerce

At 12:17 p.m., Mayor Ghatan welcomed Becki Day, SJI Chamber Director, to report on times and activities planned for the Fourth of July. The Mayor and Council thanked Ms. Day.

Visitors Bureau

At 12:21 p.m., Mayor Ghatan introduced Deborah Hoskinson, VB Director, to report on the proposed campaign for summer and fall 2021 advertising and budget. No discussion followed.

Moved by Hushebeck, seconded by Starr, to approve the proposed budget and marketing campaign for Summer and Fall 2021. Motion passed unanimously.

OJC Properties – Request to Amend Development Agreement

At 12:29 p.m., Mayor Ghatan introduced discussion of the request by OJC Properties to amend its existing Developers Agreement to allow an additional unit at 805 Argyle Avenue. CDPD Director, Ryan Ericson explained that the Department recommends referring the matter to the Planning Commission. No discussion followed. **Council consensus to refer the request to the Planning Commission for recommendation.**

Ordinance No. 1727

At 12:29 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1727 concerning time limited parking. Said Ordinance designates 4-hour parking on Spring Street from Blair Avenue to Mullis Street and 8-hour parking from Mullis Street to Marguerite Place. No discussion followed.

Moved by Monin, seconded by de Freitas, to adopt Ordinance No. 1727, amending Chapters 10.04 FHMC concerning time limited parking. Motion passed unanimously.

Resolution No. 2651

At 12:35 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2651 concerning Mullis Street. Said Resolution accepts the recent improvements. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2651 accepting the Mullis Street Improvement Project and releasing unencumbered retainage. Motion passed unanimously.

Toilet Rebate Program

At 12:37 p.m., Mayor Ghatan introduced discussion of the Toilet Rebate Program. Administrator Wilson explained that the program fund is depleted. Discussion followed regarding expansion of the program.

Moved by Starr, seconded by Monin, to fund the Toilet Rebate Program $1,000 for the remainder of year 2021 and add $1,000 for year the 2022 proposed budget. Motion passed unanimously.

ADMINISTRATOR'S REPORT

At 12:44 p.m., Administrator Wilson presented the Town Council with an update of the following:

- AWC City Vision Magazine – AWC will feature Friday Harbor next issue.
- WWTP Staffing – The upcoming retirement of Herb Mason will leave the department short 2FTEs.
- PW Intern / Temporary Employee – **Council consensus to allow the internship of 30 hours and upon successful completion, temporary employment of Robin Taylor at the Public Works Administrative Offices.**
- TIB Grant Cycle – The WSDOT will be visiting Friday Harbor to inspect upcoming projects for the 2022 TIB Grant Cycle. Discussion followed regarding Marguerite Street.
- Council Chambers – Town requested a bid for new windows (IGU replacement) in the Town Chambers.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to approve the Finance Department Agenda as listed below. Motion passed unanimously.

Finance Department Agenda Items

Presented at Council Meeting: July 1, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 47990-48019
- ACH Number:
- Amount: $137,889.89
- Dated: 07/01/21

APPROVAL OF MINUTES
Moved by de Freitas, seconded by Starr, to approve the minutes of June 3rd and 17th, 2021. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS
No future agenda items were forthcoming.

CITIZEN RESPONSE
No citizen response was forthcoming.

EXECUTIVE SESSION
At 1:08 p.m., Mayor Ghatan announced that the Council would be holding two executive session regarding employee performance in accordance with the provisions of RCW 42.30.110(1)(g) and real estate acquisition in accordance with the provisions of RCW 42.30.110(1)(c); which was estimated to a combined total of 20 minutes. Participants: Town Council, Mayor Ghatan, Administrator Wilson, Finance Officer Berry, and Clerk Taylor. The session ended at 1:53 p.m. for an actual session time of 45 minutes. The public was properly informed of the time extension. No actions were taken following executive session.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:53 p.m. The next regular meeting is scheduled for Thursday, July 15, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, July 15, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

San Juan County Update

At 12:03 p.m., Mayor Ghatan introduced SJC Councilmember Christine Minney to update the Council on issues of mutual concern. Councilmember Minney reported on the new environmental division, vacation rental moratorium, Lampard Public Works, meeting in person and mitigation on Missing Mountain Road. The Mayor and Council thanked Ms. Minney.

Resolution No. 2652 & Blair Avenue Mural Application

At 12:09 p.m., Mayor Ghatan introduced discussion of the Blair Avenue Mural. CDPD Director, Ryan Ericson, described the application process and recommended approval. Discussion followed regarding the theme of the piece.

Moved by de Freitas, seconded by Hushebeck, to adopt Resolution No. 2652, authorizing the agreement for installation of the Blair Avenue Mural Project. Motion passed unanimously. [Clerk's Note: Separate approval of Mural Application 01-M-2021 was not required.]

Resolution No. 2653

At 12:12 p.m., Mayor Ghatan introduced discussion of the pilot project for curbside plastic film recycling. Administrator Wilson explained that SC Johnson has forward a memorandum of understanding. Discussion followed regarding scope of the project.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2653, authorizing the Mayor to execute an agreement with SC Johnson for a pilot project for Curbside Plastic Film Recycling. Motion passed unanimously.

Resolution No. 2654

At 12:21 p.m., Mayor Ghatan introduced discussion of Resolution No. 2654 concerning pedestrian improvements on Spring Street. Administrator Wilson explained that removal of the street trees and buckled sidewalk now require repair. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2654, authorizing the Mayor to execute an agreement with Mike Carlson Enterprises for the Spring & Second Street Pedestrian Improvement Project. Motion passed unanimously.

American Rescue Plan Funding

At 12:26 p.m., Mayor Ghatan introduced discussion of possible uses for the American Recovery Act funding. Potential uses include: purchase of real property, revenue replacement, rent relief program, mental health programs, daycare availability, and EDC trades program. Discussion followed. No action was taken.

ADMINISTRATOR'S REPORT

At 12:48 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Sewer Department Employee – Patrick Minney has accepted an offer for the available Utility Worker I position.
- PW Yard Building – Town is requesting quotes for maintenance of the building.
- RV Dump Station – The station will remain locked until a process is developed for monitoring.
- Front Street Pocket Park – The project has gone out to bid.
- Granulated Activated Carbon Bid – Town has completed its GAC Study and will issue a new bid for non-coconut-based product.

- PW Intern – Robin Taylor has begun as the new intern.
- Marguerite Place Improvements – The Transportation Improvement Board will be visiting Friday Harbor. The project will likely be most viable for upcoming grant cycles.
- Town Meetings – Town will resume meeting in the Council Chambers starting in August.
- 2022 PFFAP – Town is considering various projects for this year's grant cycle.
- Disability Insurance – AWC Employee Benefit Trust will be requiring enrollment in long-term disability insurance for the Town. Town will be reviewing the participation and rate requirements with employees.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to affirm the payment of Payroll Warrants and approve the payment of Claim Warrants as enumerated below. Motion passed unanimously.

Finance Department Agenda Items: July 15, 2021
Approval of 2021 Claim Warrants

- Warrant Number: 47020-48059
- ACH Number: EFT 1-2
- Amount: $117,695.49
- Dated: 07/15/21

Approval of June 2021 Payroll Warrants

- Warrant Number: 17383-17395 & 06/30/2021 Direct Deposit
- ACH Number: 53-56
- Amount: $348,001.85
- Dated: 06/30/21

Approval of June 2021 Treasurer Checks

- Warrant Number: 10123-10130
- ACH Payments Total: 3
- Amount: $746,118.67
- Dated: June 2021

APPROVAL OF MINUTES

Moved by de Freitas, seconded by Monin, to approve the minutes of July 1, 2021 as submitted. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:26 p.m. The next regular meeting is scheduled for Thursday, August 5, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, August 5, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5). Anna Maria de Freitas (Position No. 3) was absent.

Others Present: Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

Council excused the absence of Councilmember de Freitas.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

Resolution No. 2655

At 12:05 p.m., Mayor Ghatan introduced discussion of Resolution No. 2655 concerning use of ARPA funding for Family Resource Center programs. FRC Director Jennifer Armstrong described the income-based programs for "Access to Behavioral Health Counseling", "Peer Support Counseling", and "Island Neighbors Support for Vulnerable Islanders". Discussion followed regarding other issues related to the on-going pandemic and coordination with other agencies.

Moved by Hushebeck, seconded by Starr, to adopt Resolution No. 2655, allocating American Rescue Plan Act funding to the Family Resource Center for programs to support residents experiencing behavioral health challenges due to the Covid-19 pandemic. Motion passed 4-0 with de Freitas absent.

Resolution No. 2656

At 12:19 p.m., Mayor Ghatan introduced discussion of Resolution No. 2656 concerning temporary procedures to respond to the pandemic. Administrator Wilson explained that the Resolution revokes the emergency powers granted pursuant to Resolution 2544. No discussion followed.

Moved by Starr, seconded by Hushebeck, to adopt Resolution No. 2656, revoking temporary procedures to respond to the Covid-19 pandemic. Motion passed 4-0 with de Freitas absent.

Resolution No. 2657

At 12:23 p.m., Mayor Ghatan introduced discussion of Resolution NO. 2657 concerning a bill of sale for sidewalk improvements. Administrator Wilson explained that Hamilton Ranch Apartments, has installed sidewalk frontage improvements to the public right-of-way located on Grover Street across from the ballfields. No discussion followed.

Moved by Monin, seconded by Hushebeck, to adopt Resolution No. 2657, accepting the bill of sale from Hamilton Ranch Apartments, LLC. Motion passed 4-0 with de Freitas absent.

Resolution No. 2658

At 12:24 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2658 concerning claims analysis services for the Tucker Avenue Reconstruction Project, Phase 2. Administrator Wilson explained that the budget for Stewart Consulting is depleted. Amendment No. 2 in the amount of $7,500 will extend the budget through the trial date. No discussion followed.

Moved by Hushebeck, seconded by Monin, to adopt Resolution No. 2658, authorizing Amendment No. 2 to the agreement with Stewart Consulting, LLC for claims analysis services for the Tucker Avenue Reconstruction Project, Phase 2. Motion passed 4-0 with de Freitas absent.

Resolution No. 2659

At 12:29 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2659 concerning the First Street Pocket Park. Administrator Wilson explained that the low bid submitted lacked the necessary bid bond to be responsive and the high bid exceeded the engineering estimate for the value of work being proposed. The recommendation is to reject all bids and rebid the project. No discussion followed.

Moved by Starr, seconded by Hushebeck, to adopt Resolution No. 2659, rejecting bids for installation of a pocket park at the intersection of First and Court Streets. Motion passed 4-0 with de Freitas absent.

Resolution No. 2660

At 12:31 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2660 concerning Trout Lake Road. Administrator Wilson explained that Mike Carlson Enterprises submitted a time and materials bid for up to $42,529.60. Discussion followed regarding the previous bid proposal withdrawn by MEM Enterprises (March 2021).

Moved by Hushebeck, seconded by Starr, to adopt Resolution No. 2661, awarding the bid and authorizing the Mayor to execute a contract for the construction of road improvements in the Trout Lake Watershed. Motion passed 4-0 with de Freitas absent.

ADMINISTRATOR'S REPORT

At 12:36 p.m., Administrator Wilson presented the Town Council with an update of the following:

- SC Johnson – The curbside recycling program is scheduled to begin October 1, 2021.
- WWTP Sewer Outfall Project – The project is out to bid.
- WTP – The SCADA equipment if malfunctioning causing staffing issues and filter is not flushing properly causing volume issues.
- Town Broadband Proposal – Town may ARPA use the funding on project.
- Public Works Yard – SJC is requesting an additional six-month lease to vacate the yard.
- RV Station – Town has reopened the station.
- EV Policy – Town is researching fleet replacement.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Hushebeck, to affirm the payment of Payroll Warrants and approve the payment of Claim Warrants as enumerated below. Motion passed 4-0 with de Freitas absent.

Approval of 2021 Claim Warrants
- Warrant Number: 48060
- ACH Number:
- Amount: $241,019.15
- Dated: 08/05/21

Approval of July 2021 Payroll Warrants
- Warrant Number: 17396-17406
- ACH Number: 57-59
- Amount: $ 341,348.69
- Dated: 07/31/21

Approval of MONTH 2021 Treasurer Checks
- Warrant Number: 10131-10142
- ACH Payments: 1
- Amount: $ 13,549.18
- Dated: July 2021

Approval of 2021 Claim Warrants- Batch 2
- Warrant Number: 48123-48124
- ACH Number:
- Amount: $15,000
- Dated: 08/05/21

APPROVAL OF MINUTES

Moved by Starr, seconded by Hushebeck, to approve the minutes of July 15, 2021. Motion passed 4-0 with de Freitas absent.

FUTURE AND NON-AGENDA ITEMS

Future discussion items include an electric vehicle policy and micro-housing (dorm style community).

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:35 p.m. The next regular meeting is scheduled for Thursday, August 19, 2021, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, August 19, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5). Anna Maria de Freitas (Position No. 3) was absent.

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

EXCUSED ABSENCE

The Council unanimously excused the absence of Councilmember de Freitas. Councilmember Monin was excused from session early due to an emergency.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

Resolution No. 2661

At 12:01 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2661 concerning the annual cold weather shelter program. The United Way of San Juan County is requesting $2,000 of reimbursable funding to assist the program from November 2021 through March 2022. Discussion followed regarding Covid-19 precautions and adequate funding.

Moved by Starr, seconded by Hushebeck, to adopt Resolution No. 2661, authorizing a grant agreement with the United Way of San Juan County for 2021-2022 Cold Weather Shelter Program. Motion passed 4-0 with de Freitas absent.

Blair Avenue Mural Project

At 12:09 p.m., Mayor Ghatan introduced discussion of the Blair Avenue Mural Project. Administrator Wilson explained that the Artists submitted a request for reimbursement for unanticipated conditions. Discussion followed regarding the condition of the wall and expanded project area.

Moved by Hushebeck, seconded by Starr, to approve the Change Order Request and reimburse the Artists $1,000 for additional labor and materials. Motion passed 4-0 with de Freitas absent. [Clerk's Note: From Administrator's Report - Council consensus to fund the request 50/50 between the FHAC and LTAC.]

Resolution No. 2663

At 12:18 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2663 regarding the WWTP Solar Array Project. Administrator Wilson explained that the amendment was administrative in nature. The Department of Commerce is reconciling final grant documentation for the project. No discussion followed.

Moved by Starr, seconded by Hushebeck, to adopt Resolution No. 2663, accepting Amendment A reconciling the Energy Retrofit Grant (No. 19-92501-004) with the Department of Commerce for the solar array project at the Wastewater Treatment Plant. Motion passed 3-0 with Monin and de Freitas absent.

Resolution No. 2664

At 12:21 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2664 regarding the Spring Street Pedestrian Improvement Project. Project Manager Pedro Mena explained that the Change Order reconciles quantities. No discussion followed.

Moved by Hushebeck, seconded by Starr, to adopt Resolution No. 2664, authorizing Change Order No. 1 and accepting the 2021 Spring Street Pedestrian Improvement Project. Motion passed 3-0 with Monin and de Freitas absent.

Resolution No. 2665

At 12:24 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2665 regarding the First Street Pocket Park. Administrator Wilson explained that Gull Wing Construction submitted the lowest responsive bid. No discussion followed.

Moved by Starr, seconded by Hushebeck, to adopt Resolution No. 2665, awarding a bid and authorizing the Mayor to execute construction documents with Gull Wing Construction, LLC for installation of the First Street Pocket Park. Motion passed 3-0 with Monin and de Freitas absent.

Resolution No. 2666

At 12:27 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2666 regarding the WWTP Outfall Improvements. Public Works Director Wayne Haefele explained that the construction management tasks authorized by the Amendment were necessary due to the extensive nature of daily inspection for the project. Discussion followed regarding the scope of work.

Moved by Hushebeck, seconded by Starr, to adopt Resolution No. 2666, authorizing the Mayor to execute Amendment No. 3 to the agreement with Wilson Engineering to design WWTP Outfall Improvements. Motion passed 3-0 with Monin and de Freitas absent.

Harrison Sewer Replacement Project

At 12:32 p.m., Mayor Ghatan introduced discussion of the Harrison Street Sewer Main Replacement Project. Project Manager Pedro Mena explained that the project is designed and requested authorization to call for bids for construction. No discussion followed.

Moved by Hushebeck, seconded by Starr, to direct Public Works to issue a call for bids for the Harrison Street Sewer Main Replacement Project. Motion passed 3-0 with Monin and de Freitas absent.

Town Fee Schedule

At 12:36 p.m., Mayor Ghatan introduced discussion of the 2021 Town Fee Schedule. Administrator Wilson explained that recent increases for SJC Auditor recording fees necessitate passing fees along to the parcel owners. The Affordable Housing for All Surcharge, effective July 2021, added a minimum $100 charge per document recorded through SJC. Discussion followed regarding the purpose of fee increases.

Moved by Hushebeck, seconded by Starr, to adopt the Town Fee Schedule effective September 1, 2021. Motion passed 3-0 with Monin and de Freitas absent.

Ordinance No. 1728

At 12:40 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1728 concerning the RV dump station. Administrator Wilson explained that the Ordinance sets the $20 per use fee. No discussion followed.

Moved by Starr, seconded by Hushebeck, to adopt Ordinance No. 1728, adding a new section to Chapter 13.21 FHMC concerning septage station use charges. Motion passed 3-0 with Monin and de Freitas absent.

FFCOL

At 12:43 p.m., Mayor Ghatan introduced discussion of Finding of Fact and Conclusions of Law by the Planning Commission. CDPD Director Ryan Erikson presented the Planning Commission's findings regarding proposed ordinances for accessory dwelling units, binding site plans and shoreline master program. No discussion followed.

Moved by Starr, seconded by Hushebeck, to adopt Findings of Fact, Conclusions of Law and Recommendation by the Planning Commission for draft Ordinance Nos. 1729, 1730 and 1731. Motion passed 3-0 with Monin and de Freitas absent.

Ordinance No. 1729

At 12:46 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1729 concerning attached accessory dwelling units. CDPD Director Ryan Erikson explained that the language replaces the current interim ordinance. Discussion followed regarding allowable size, lack of consistency with SJCC thresholds for size and transient rentals.

Moved by Starr, seconded by Hushebeck, to adopt Ordinance No. 1729, relating to Land Use and Zoning, adopting zoning development regulations for accessory dwelling units attached to primary structures and amending definitions in Chapter 17.08. Motion passed 2-1 with Daniels opposed and Monin and de Freitas absent.

Ordinance No. 1730

At 1:01 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1730 concerning binding site plan regulations. CDPD Director Ryan Erikson explained that the language replaces the current interim ordinance. No discussion followed.

Moved by Starr, seconded by Hushebeck, to adopt Ordinance No. 1730, adopting procedures for the divisions of land by use of a binding site plan as an alternative to procedures in RCW 58.17 Plats – Subdivision – Dedication. Motion passed 3-0 with Monin and de Freitas absent.

Ordinance No. 1731

At 1:04 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1731 concerning Shoreline Master Plan updates. CDPD Director Ryan Erikson explained the Town has completed the necessary process for updates. No discussion followed.

Moved by Hushebeck, seconded by Starr, to adopt Ordinance No. 1731, adopting a Shoreline Master Program, and repealing Chapter 19.04 of the Town of Friday Harbor Municipal Code and adopting a substitute Chapter 19.04 in its place. Motion passed 3-0 with Monin and de Freitas absent.

Spring Street Rain Garden

At 1:09 p.m., Mayor Ghatan introduced discussion of the Spring Street Rain Garden. Administrator Wilson explained that the current plants are dying. Discussion followed regarding the available options. Council consensus to replant the rain garden and authorize staffing to water in appropriate months with the Town truck.

ADMINISTRATOR'S REPORT

At 1:20 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Council Chambers
- First Street Pocket Park
- Coldwell Banker Repairs
- Street Sweeper
- Sewer Outfall Replacement Project
- Water Treatment Plant - SCADA Monitoring
- Curbside Plastic Recycling
- RV Dump
- GAC Carbon
- 160 West Street
- ARPA Funding Request

PAYMENT OF CLAIMS

Moved by Starr, seconded by Hushebeck, approve the payment of Claims as presented below. Motion passed 3-0 with Monin and de Freitas absent.

Presented at Council Meeting: August 19, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 48125-48177
- ACH Number: EFT 1-2
- Amount: $185,465.40
- Dated: 08/19/21

APPROVAL OF MINUTES

Moved by Starr, seconded by Hushebeck, to approve the minutes of August 5, 2021 as submitted. Motion passed 3-0 with Monin and de Freitas absent.

FUTURE AND NON-AGENDA ITEMS

Mayor Ghatan will include continued discussion of attached and detached accessory dwelling units on future agendas.

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:45 p.m. The next regular meeting is scheduled for Thursday, September 2, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, September 2, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5). Anna Maria de Freitas (Position No. 3) was absent.

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

EXCUSED ABSENCE
Council consensus to excuse the absence of Councilmember de Freitas.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
Mayor Ghatan accepted public access regarding the proposal to mandate Covid-19 vaccinations for employees and volunteers. The following residents spoke against the mandating the vaccine as a condition of employment (not reflective of whether the individual was pro- or anti- vaccine.) Kelle' Wilson, Laura Nibler, Justin Nibler and Mark Heckle.

ACTION AND DISCUSSION ITEMS
Legislative Update

At 12:09 p.m., Mayor Ghatan welcomed Washington 40th District Representatives Alex Ramel and Patty Lovelett to provide a legislative update. Topics included public health infrastructure, HB1069 Stimulus Package, pending legislation for childcare and education, rental assistance, and Washington State Ferries. The Council thanked Representatives Ramel and Lovelett. No action was taken.

Friday Harbor Arts Commission

At 12:41 p.m., Mayor Ghatan introduced Teressa Smith as the new candidate to volunteer on the Friday Harbor Arts Commission. No discussion followed.

Moved by Starr, seconded by Monin, to affirm the appointment of Teressa Smith to the Friday Harbor Arts Commission. Motion passed 4-0 with de Freitas absent.

Covid-19 Vaccination Mandate

At 12:43 p.m., Mayor Ghatan introduced discussion concerning Covid-19 vaccination mandates. Administrator Wilson explained that the State and San Juan County recently mandated that employee receive the vaccination as a condition of employment. Administrator Wilson explained that the Council may also opt to mandate vaccinations and that issues relating to such a policy are mitigated through the union negotiations. Discussion followed regarding the pros and cons of such policies. No action was taken. *[Clerk's Note: Councilmember Starr stated favor for the policy, while Councilmembers Monin, Hushebeck and Daniels declined to entertain at this time. No motion was made.]*

Resolution No. 2662

At 1:05 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2662 regarding carbon filter media. Administrator Wilson explained that Calgon Carbon submitted a responsive bid for sole-source carbon filter media supply and recharging. No discussion followed.

Moved by Hushebeck, seconded by Starr, to adopt Resolution No. 2662, authorizing the Mayor to execute an agreement with Calgon Carbon Corporation for sole-source supply of activated granulated carbon for the Water Treatment Plant. Motion passed 4-0 with de Freitas absent.

ADMINISTRATOR'S REPORT

At 1:15 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Crosswalk Request – Town received a request to install a crosswalk near Tucker Avenue and University Way. A recommendation will be made.
- Sewer ULID – The Port, Buck Family and Home Trust are negotiating a cost sharing agreement for a feasibility study for installation of sewer utilities.
- Spring Street Rain Gardens – The demonstration garden will cost approximately $5,000 to replant this Fall.
- Water Treatment Filter – The sand filter at the water treatment plant has been repaired.
- Water Systems Manager – Mike Deegan has submitted his notice of retirement effective October 1, 2021.
- ARPA Funding Requests – Town received another round of ARPA requests that will be presented during budget discussions.
- Local 1849F – Union negotiations for the next collective bargaining agreement have started.
- New Employee – Town hired Emily Bayuk to fill the Sewer Department position.
- 9/11 Ceremony – Town will participate in the September 11th Remembrance Ceremony at Memorial Park.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to affirm the payment of Payroll Warrants and approve the payment of Claim Warrants as enumerated below. Motion passed 4-0 with de Freitas absent.

Presented at Council Meeting: September 02, 2021

Approval of 2021 Claim Warrants

- Warrant Number: 48178-48224
- ACH Number:
- Amount: $201,603.35
- Dated: 09/02/21

Approval of August 2021 Payroll Warrants

- Warrant Number: 17407-17417
- ACH Number: 60-62
- Amount: $ 331,791.30
- Dated: 08/31/21

Approval of MONTH 2021 Treasurer Checks

- Warrant Number: 10143-10151
- ACH Payments: 1
- Amount: $ 9,310.46
- Dated: August 2021

APPROVAL OF MINUTES

Moved by Starr, seconded by Daniels, to approve the minutes of August 19, 2021 as submitted. Motion passed 4-0 with de Freitas absent.

FUTURE AND NON-AGENDA ITEMS

Councilmember Monin requested that traffic calming be addressed or additional enforcement at the new roundabout.

Mayor Ghatan stated that the FHAC is focusing on bringing art to Spring Street.

CITIZEN RESPONSE

Howard Rosenfeld commented on the proposed vaccine mandates and suggested offering a monetary incentive.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan continued the meeting at 1:36 p.m. The continued meeting is scheduled for Thursday, September 9, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, September 9, 2021 – Council Chambers – Continued Session

CALL TO ORDER

Mayor Ghatan called the continued session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Others Present: Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

ACTION AND DISCUSSION ITEMS
Resolution No. 2667
At 12:03 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2667 concerning the Sewer Outfall Replacement Project. Administrator Wilson and Public Works Director Haefele explained that two bids were received after soliciting the project. Both bids were significantly higher than the engineering estimate. However, given the importance of the project, the Town Engineer recommends awarding the project to Redside Construction. The Town has capital funds available to offset project costs and is currently working with Department to increase its grants and loans. Discussion followed regarding the current bidding climate.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2667, awarding the bid for the WWTP Sewer Outfall Replacement Project to Redside Construction; and authorizing the Mayor to execute a unit price with base bid contract amount of $2,647,250, excluding sales tax, and associated construction documents. Motion passed unanimously.

CITIZEN RESPONSE
No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 12:28 p.m. The next regular meeting is scheduled for Thursday, September 16, 2021 at 12:00 p.m.

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These minutes were approved on ___. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, Date, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5).

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

Public Access was accepted from the following individuals concerning the proposed vaccine mandates: Lora Nibler, Kelle' Wilson, Sandy Strehlou, Mike Carlson, Alison Posenjak, Debbie Sandwith and David Rothenson.

ACTION AND DISCUSSION ITEMS

COVID-19 Vaccination Mandates

At 12:23 p.m., Mayor Ghatan introduced discussion of mandating COVID-19 vaccinations as a condition of employment. SJC Health Officer Frank James commented on safety. Administrator Wilson explained that the purpose of the conversation was to allow members who were not present on September 2nd comment. Discussion followed regarding the pros and cons of the proposed mandate and audience comments.

Moved by Starr, seconded by de Freitas, to direct staff to prepare a policy for consideration that would include incentives and exemptions. Motion passed 3-1 with Daniels opposed and Hushebeck abstained.

Ordinance No. 1732

At 1:18 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1732 relating to Town Fire Marshal. Administrator Wilson explained that the Town unintentionally repealed the fire marshal position when it abolished the fire department years ago. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Ordinance No. 1732, adopting Chapter 2.13 FHMC relating to Fire Marshal. Motion passed unanimously.

Fire & Town Marshal Appointment

At 1:20 p.m., Mayor Ghatan requested that Council affirm his appointment of Ryan Ericson to the position of Marshal and Fire Marshal for the Town of Friday Harbor. No discussion followed.

Moved by Starr, seconded by Hushebeck, to affirm the appointment Community Development and Planning Director Ryan Ericson to the position of Marshal and Fire Marshal for the Town of Friday Harbor. Motion passed unanimously.

HPRB Appointment

At 1:21 p.m., Mayor Ghatan requested that the Council affirm his appointment of Karl Eberhard to the vacant position on the Historic Preservation Review Board. Mr. Eberhard introduced himself and spoke about his credentials.

Moved by Starr, seconded by de Freitas, to affirm the appointment of Karl Eberhard to the Historic Preservation Review Board. Motion passed unanimously.

Resolution No. 2669

At 1:22 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2669 concerning 1000 Guard Street. Administrator Wilson explained that SJC has exercised its right to request a six-month renewal on their current lease. No discussion followed.

Moved by de Freitas, seconded by Monin, to adopt Resolution No. 2669, authorizing the Mayor to execute a lease agreement with San Juan County for 1000 Guard Street. Motion passed unanimously.

Resolution No. 2670

At 1:25 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2670 concerning refuse containers. Administrator Wilson explained that the purchase of totes is for distribution to existing SFR customers for use with the new two-lift refuse packer. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2670, authorizing the Mayor to execute a purchase agreement with SWS Equipment for 1,200 (each) 32-gallon refuse containers with integrated lift bar design per the quote dated September 9, 2021. Motion passed unanimously.

Sewer Outfall Project

At 1:38 p.m., Mayor Ghatan introduced discussion of the Sewer Outfall Replacement Project. Administrator Wilson listed the capital funds that are accessible if the Department of Ecology declines the Town's request to increase the forgivable loan for the project. No discussion followed.

ADMINISTRATOR'S REPORT

At 1:48 p.m., p.m., Administrator Wilson presented the Town Council with an update of the following:

- Second/Spring Street Stormwater Project – An update was provided regarding secondary storm sewer repairs.
- Curbside Plastic Recycling – The pilot project will begin in October.
- Petition – Homes for Islanders submitted a petition requesting speed bumps on Browne & Ross Street.
- RFP Financial Software – Town will be requesting proposals for new software.
- LTAC – The Committee will review H/M Grant applications on October 6, 2021.
- Trout Lake – The reservoir measure -53 below spillway.
- First Street Pocket Park – The Contractor is authorized to mobilize beginning September 20, 2021.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to affirm the payment of Claim Warrants as enumerated below. Motion passed 4-0 with Daniels absent.

Approval of 2021 Claim Warrants

- Warrant Number: 48227-48264
- ACH Number: EFT 1-3 and CC Payment 1-5
- Amount: $104,935.23
- Dated: 09/16/21

APPROVAL OF MINUTES

Minutes were postponed to September 30, 2021.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

Councilmember Monin stated that "Facebook like" comments previously made by the audience were not appropriate.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan continued the meeting at 2:07 p.m. until Thursday, September 30, 2021 for the purpose of unfinished business. The next regular meeting is scheduled for Thursday, October 7, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, September 30, 2021 – Council Chambers – Continued Session

CALL TO ORDER

Mayor Ghatan called the continued session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3), and Barbara Starr (Position No. 5). The Council excused the absence of Tim Daniels (Position No. 4).

Others Present: Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; and Clerk, Amy Taylor.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

ACTION AND DISCUSSION ITEMS

Resolution No. 2668

At 12:03 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2668 concerning the Harrison Street Sewer Replacement Project. Administrator Wilson and Public Works Director Haefele explained that two bids were received after soliciting the project. The Town Engineer recommends awarding the project to Konnerup Construction. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No. 2668, awarding the bid for the Harrison Street Sewer Replacement Project to Konnerup Construction, Inc.; and authorizing the Mayor to execute a unit price with base bid contract amount of $237,500 excluding sales tax, and associated construction documents. Motion passed 4-0 with Daniels absent.

MINUTES

Moved by Starr, seconded by Monin, to adopt the minutes of September 2, 2021 and September 9, 2021. Motion passed 4-0 with Daniels absent.

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 12:09 p.m. The next regular meeting is scheduled for Thursday, October 7, 2021 at 12:00 p.m.

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These minutes were approved on ___. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, October 7, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Anna Maria de Freitas (Position No. 3), Tim Daniels (Position No. 4) and Barbara Starr (Position No. 5). Noel Monin (Position No. 2) was unanimously excused.

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

SJC Councilmember Christine Minney reported on issues of mutual concern. Topics included the redistricting process, distribution of ARPA funding and Washington State Ferries.

The following residents spoke for and against the recent Town's covid vaccine mandates for employees: Lora Nibler, Debbie Sandwith, Kelle' Wilson, Taylor Musburger and David Robinson.

ACTION AND DISCUSSION ITEMS

Covid-19 Vaccination Mandate

At 12:20 p.m., Mayor Ghatan introduced continued discussion of a vaccination mandate for employees and volunteers. Administrator Wilson described policy revisions since the previous meeting.

See Resolution No. 2672 for action.

Resolution No. 2672

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2672, establishing a policy for mandatory COVID-19 vaccinations for Town employees and volunteers. Motion pass 3-2 as follows: Aye – de Freitas, Starr & Mayor Ghatan (as tiebreaker); Nay – Hushebeck & Daniels; Absent – Monin.

Resolution No. 2671

At 12:30 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2671 concerning sidewalk improvements at the corner of 105 Spring Street. Administrator Wilson explained that Gull Wing Construction submitted the low-responsive quote to complete bump-out improvements at the intersection of Spring and First Streets. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2671, awarding a bid and authorizing the Mayor to execute a contract for construction of sidewalk improvements at the intersection of Spring and First Street (105 Spring Street). Motion passed 4-0 with Monin absent.

Harbor Street & Carter Avenue Stormwater Repairs

At 12:32 p.m., Mayor Ghatan introduced discussion of the Project. Administrator Wilson explained that while capable, the timing and scope of the project are too complex for Town staff to attempt at this point in time. Public Works Director Wayne Haefele provided background (backflowing, flooding and access issues) and requested authorization to issue a call for bids. No discussion followed.

Moved by Hushebeck, seconded by de Freitas, to authorize a call for bids on the Harbor Street & Carter Avenue Stormwater Repair Project. Motion passed 4-0 with Monin absent.

Town Fiber Optic Project – Phase 1

At 12:36 p.m., Mayor Ghatan introduced discussion of the Town Fiber Optic Project – Phase 1. Administrator Wilson explained that there are budget-neutral changes to the scope of work for the project. Pedro Mena, Capital Project Manager, explained the new scope of work. No discussion followed.

Moved by Hushebeck, seconded by Starr, to authorize a call for bids on the Town Fiber Optic Project, Phase 1. Motion passed 4-0 with Monin absent.

PUBLIC HEARING

2021 Town Budget Amendments

At 12:42 p.m., Mayor Ghatan opened the public hearing concerning 2021 Town Budget amendments. Finance Director Berry listed fund balances. Mayor Ghatan opened the public testimony portion of the meeting. No members of the public were present to submit testimony. No discussion followed by Council or staff. Mayor Ghatan praised the Town Council and Director Berry for being fiscally conservative. Mayor Ghatan closed the public hearing at 12:50 p.m.

Ordinance No. 1733

Moved by Starr, seconded by de Freitas, to adopt Ordinance No. 1733, adopting amendments to the 2021 Town Budget. Motion passed 4-0 with Monin absent.

WORK SESSION

2022 Town Budget

At 12:52 p.m., Mayor Ghatan opened the work session regarding the 2022 Town Budget. Administrator Wilson provided noted that the preliminary budget is released for consideration during future discussions. Finance Director Berry listed noteworthy budget increases and additions due to COLA and prior commitments. No action was taken.

ADMINISTRATOR'S REPORT

At 1:04 p.m., Administrator Wilson presented the Town Council with an update of the following:

- LTAC – Recommendations totaled $57,000 for various tourism promotion programs.
- Plastic Film Recycling Project – The bins have been delivered and are being distributed to customers.
- Sewer Outfall Project – The Department of Ecology has provided an amendment to supplement the funding shortfall. Town will ratify the agreement at the next meeting. **Moved by de Freitas, seconded by Starr, to authorize the Mayor to execute Amendment No. 1 and any other related documentation for Department of Ecology Grant/Loan Agreement No. WQC-2021-FriHar-00211. Motion passed 4-0 with Monin absent**.
- Marguerite Place Reconstruction Project – TIB has given preliminary funding approval for the project.
- Local 1849F – Town has been notified that Local has voted to seek a new bargaining unit.
- Utility Disconnection Moratorium – The Governor's proclamation placing a moratorium on utility disconnections has expired.
- AWC CityVision Magazine – The AWC article featuring Friday Harbor has been published.
- Town Staffing – Town is advertising for all vacant positions. Employee Taylor Musburger has been assigned interim water system manager duties. Employee Will Turman has separated from employment. Employee Josh Compton has moved laterally into the Streets Department to assume Will Turman's position.
- PW Updates – Brief updates were provided for the First Street Pocket Park and Harrison Street Sewer Main Projects.
- Street Sweeper – SJC is temporarily sweeping while repairs are delayed for parts.
- Spring Street Secondary Stormwater Repairs – The project is complete.
- Trout Lake Road – Mike Carlson Enterprises is nearly finished with grading.

PAYMENT OF CLAIMS

Moved by de Freitas, seconded by Starr, to affirm the payment of Payroll Warrants and approve the payment of Claim Warrants as enumerated below. Motion passed 4-0 with Monin absent.

Approval of 2021 Claim Warrants

- Warrant Number: 48268-48312
- ACH Number: EFT 1, CC 1-8
- Amount: $288,461.13
- Dated: 10/07/21

Approval of September 2021 Payroll Warrants

- Warrant Number: 17418-17431
- ACH Number: 63-65
- Amount: $338,997.29
- Dated: 09/30/21

Approval of September 2021 Treasurer Checks

- Warrant Number: 10152-10163
- ACH Number: EFT-1
- Amount: $ 9,575.04
- Dated: Various

APPROVAL OF MINUTES
Moved by de Freitas, seconded by Starr, to approve the minutes of Sept 16th and 30th, 2021 as submitted. Motion passed 4-0 with Monin absent.

FUTURE AND NON-AGENDA ITEMS
No future agenda items were forthcoming.

CITIZEN RESPONSE
Chuck Berry, Local 1849F President, inquired about the effective date of Resolution No. 1672.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:25 p.m. The next regular meeting is scheduled for Thursday, October 21, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, October 21, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3) and Barbara Starr (Position No. 5). Tim Daniels (Position No. 4) was excused.

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

2022 Town Budget Request – Visitors Bureau

At 12:03 p.m., Mayor Ghatan invited Deborah Hoskinson, Visitors Bureau Executive Director, to make a budget request for year 2022. Ms. Hoskinson submitted a written request for $191,000 for advertising, media relations and staff payroll related to marketing. Discussion followed regarding marketing and visitation trends from 2020 through present. Mayor Ghatan thanked Ms. Hoskinson.

Moved by Hushebeck, seconded by ___, to direct staff to add the 2022 budget request from the SJI Visitors Bureau to the final budget. Motion passed 4-0 with Daniels absent.

2022 Town Budget Request - SJI Chamber of Commerce

At 12:16 p.m., Mayor Ghatan introduced Becki Day, SJI Chamber of Commerce Director, to make a budget request for year 2022. Ms. Day submitted a written request for $62,000 operations and $7,000 for Fourth of July activities. Mayor Ghatan thanked Ms. Day.

Moved by Monin, seconded by Starr, to direct staff to add the 2022 budget request from the SJI Chamber of Commerce to the final budget. Motion passed 4-0 with Daniels absent.

2022 Town Budget Request - SJC Economic Development Council

At 12:24 p.m., Mayor Ghatan invited Victoria Compton, Economic Development Council Director, to present an annual report and request for support to fund economic development programs in year 2022. Ms. Compton presented a local economic snapshot and reviewed EDC offerings. The Council was provided a 2022 budget request of $43,470 to support the 2022 initiatives, reflecting an increase of 0% COLA; plus $3,500 for new programming costs through Skagit Valley College; and $11,500 for a new Tech Accelerator Training Initiative. Discussion followed concerning use of ARPA funding. Mayor Ghatan thanked Ms. Compton.

Moved by Hushebeck, seconded by Starr, to direct staff to add the 2022 budget request from the SJC Economic Development Council to the final budget. Motion passed 4-0 with Daniels absent.

2022 Town Budget Request - Family Resource Center

At 12:37 p.m., Mayor Ghatan invited Jennifer Armstrong, JLS Family Resource Center Director, to present a budget request for support in year 2022. The Council was provided a 2022 budget request of $24,000 to support a pilot program for infant and toddler daycare. Discussion followed about the logistics of the program. Mayor Ghatan thanked Ms. Armstrong.

Moved by Starr, seconded by de Freitas, to direct staff to add the 2022 budget request from the JLS Family Resource Center to the final budget. Motion passed 4-0 with Daniels absent.

Resolution No. 2674

At 12:54 p.m., Mayor Ghatan introduced discussion of Resolution No. 2674 concerning upgrades to the SCADA and telemetry equipment for the water utility. Administrator Wilson and Systems Administrator Mike Greene explained the urgent need to upgrade the existing equipment and software systems for the water distribution utility and that S&B, Inc. submitted a quote in the amount of $119,395. Discussion followed regarding the recent Hillview Terrace pump failure that resulted in a potential backflow emergency due to non-functioning telemetry equipment. (Hillview Terrace pumps failed to pump water allowing the reservoir tanks to drain to 5 feet.)

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2674, authorizing the Mayor to execute an agreement with S&B, Inc. for SCADA and telemetry upgrades for the water distribution utility in the amount of $119,395. Motion passed 4-0 with Daniels absent.

2022 H/M Grant Program Recommendations

At 1:07 p.m., Mayor Ghatan introduced discussion of the 2022 Hotel Motel Tax Grant. Administrator Wilson explained that the LTAC met to consider six grant requests totaling $77,880. The LTAC recommends funding six proposals with the balance of the $57,000. No discussion followed.

Moved by Hushebeck, seconded by Starr, to accept the recommendation of the Lodging Tax Advisory Committee in their memorandum dated October 11, 2021 and include funding in the draft 2022 Town Budget. Motion passed 4-0 with Daniels absent.

Harbor Life Ring Program – FH Food Bank Donation

At 1:11 p.m., Mayor Ghatan introduced discussion of the annual Harbor Life Ring donation to the FH Food Bank in November. Administrator Wilson requested that Town increase its matching grant because of the COVID-19 pandemic. Discussion followed regarding an additional increase.

Moved by Starr, seconded by Monin, to authorize a matching grant in the amount of $3,000 in addition to Harbor Life Ring donations during the month of November to assist the Friday Harbor Food Bank activities in year 2021. Motion passed 4-0 with Daniels absent.

Resolution No. 2673

At 1:20 p.m., Mayor Ghatan introduced discussion of Resolution No. 2673 concerning a water efficiency grant. Administrator Wilson explained that Town has an opportunity to apply for grant funding from the Bureau of Reclamation's WaterSMART Water Energy Efficiency Grant Program to supplement its capital program for automated meter reading. The grant requires adoption of a resolution committing to certain grant conditions. Discussion followed regarding the number of potential hours saved by staff with wireless meter reading.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2673, authorizing an application for grant funding by the Bureau of Reclamation's WaterSMART Water Energy Efficiency Grant Program for an automated meter reading program. Motion passed 4-0 with Daniels absent.

Resolution No. 2675

At 1:28 p.m., Mayor Ghatan introduced discussion of Resolution No. 2675 concerning the Sewer Outfall Replacement Project. Administrator Wilson explained that the resolution ratifies the recent grant amendment for the project. No discussion followed.

Moved by de Freitas, seconded by Hushebeck, to adopt Resolution No. 2675, authorizing the Mayor to execute Amendment No. 1 to the loan and forgivable loan documentation with the Department of Ecology referred to as Agreement No. WQC-2021-FriHar-00211 for the project known as the Sewer Outfall Replacement Construction Project. Motion passed 4-0 with Daniels absent.

Resolution No. 2676

At 1:30 p.m., Mayor Ghatan introduced discussion of Resolution No. 2676 concerning PW Engineering & Design Standards. Administrator Wilson explained that Amendment No. 1 with Gray & Osborne increases the budget by $20,000 for several services related to completion of the document. No discussion followed.

Moved by Hushebeck, seconded by de Freitas, to adopt Resolution No. 2676, authorizing the Mayor to execute Amendment No. 1 to the agreement with Gray & Osborne for development of the Town PW Engineering & Design Standards. Motion passed 4-0 with Daniels absent.

Resolution No. 2677

At 1:33 p.m., Mayor Ghatan introduced discussion of Resolution No. 2677 concerning claims analysis. Administrator Wilson explained that Amendment No. 2 with Gray & Osborne increases the budget an additional $20,000 for claims analysis services associated with the upcoming litigation for the Tucker Avenue Reconstruction Project, Phase 2. No discussion followed.

Moved by Monin, seconded by de Freitas, to adopt Resolution No. 2677, authorizing the Mayor to execute Amendment No. 2 to the agreement with the engineering firm of Gray & Osborne, Inc. for claims analysis services for the Tucker venue Reconstruction Project, Phase 2. Motion passed 4-0 with Daniels absent.

WORK SESSION

2022 Town Budget

At 1:40 p.m., Mayor Ghatan opened the work session on the 2022 Town Budget Process. Administrator Wilson reported on the following:

- Brief summary of department budget requests.
- Discussion of proposed staff positions.

The Council was asked to submit any questions regarding budget items of interest. The Council and Mayor thanked Administrator Wilson and Finance Director Berry.

ADMINISTRATOR'S REPORT

At 2:15 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Employee Interviews – Town is conducting interviews for the Water Distribution position today.
- PW Updates – Updates were given for current PW projects.
- Sewer Outfall Project – The contractor has been issued a notice to proceed.
- Memorial Park Lighting – Another truck damaged the lighting.
- Light Standard – This light pole at the Guard Street & Tucker Avenue intersection was replaced.
- Garbage Totes – Totes are on order.
- Street Standards for Transitions – A policy for exemptions is being drafted for unimproved areas.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to approve the payment of Claim Warrants as enumerated below. Motion passed 4-0 with Daniels absent.

Approval of 2021 Claim Warrants

- Warrant Number: 48314-48358
- ACH Number: EFT 1
- Amount: $350,000.94
- Dated: 10/21/21

APPROVAL OF MINUTES

Moved by de Freitas, seconded by Starr, to approve the minutes of October 7, 2021 as submitted. Motion passed 4-0 with Daniels absent.

FUTURE AND NON-AGENDA ITEMS

Councilmember Starr requested further discussion on the potential community uses of ARPA funding.

CITIZEN RESPONSE

Diane Martindale, SJIMA Representative, thanked the Council for allocation of SJIMA's grant funding for year 2022 tourism promotion.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 2:45 p.m. The next regular meeting is scheduled for Thursday, November 4, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, November 4, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Anna Maria de Freitas (Position No. 3) and Barbara Starr (Position No. 5). Noel Monin (Position No. 2) and Tim Daniels (Position No. 4) were absent. Council consensus to excuse the absence of Councilmembers Monin and Daniels.

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

No public access was forthcoming.

PUBLIC HEARING

2022 Town Budget

At 12:05 p.m., Mayor Ghatan opened the public hearing regarding the 2022 Town Budget. Administrator Wilson and Finance Director Berry asked if the Council had questions or topics of interest. No members of the audience were present to provide public testimony. Mayor Ghatan closed the public hearing at 12:07 p.m.

ACTION AND DISCUSSION ITEMS

2022 Town Budget Work Session

At 12:07 p.m., Mayor Ghatan opened the work session regarding the 2022 Town Budget. Administrator Wilson and Finance Director Berry reviewed budget requests. Discussion followed regarding staffing needs including the addition of employees in the Water and Administration departments. The Council reached the following consensus:

- Approve the budget memo dated October 21, 2022 with the exception of personnel requests.
- Approve inclusion of an additional water distribution employee and postpone administration staffing requests.
- Approve the ARPA funding request of the Family Resource Center for $13,000 for year 2021 and $30,000 for year 2022.
- Communicate to the FH Food Bank that monies are available.

Resolution No. 2678

At 1:02 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2678 concerning the Town Fiber Optic Project. Public Works Director Wayne Haefele explained that Konnerup Construction submitted the lowest bid to install town-supplied conduit for the fiber optic project. Discussion followed regarding connectivity to the new public works building.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2678, awarding the bid and authorizing the Mayor to execute a contract for construction of the Marguerite Fiber Optic Project. Motion passed 3-0 with Monin and Daniels absent.

Stormwater Issues - Harborview Apartments

At 1:10 p.m., Mayor Ghatan introduced discussion of an Opportunity Council requesting that the Town cost share expenses for installing stormwater improvements adjacent to Tucker Avenue at Harborview Apartments. Town is requested to contribute $26,253.56 to mitigate excessive stormwater. Discussion followed regarding the amount requested. Council consensus to approve cost sharing up to $22,000 for the proposal presented.

Resolution No. 2679

At 1:52 p.m., following Executive Session:

Moved by Hushebeck, seconded by de Freitas, to adopt Resolution No. 2679, authorizing the Mayor to execute an agreement with Prothman Company to conduct an executive search for the position of Town Administrator. Motion passed 3-0 with Monin and Daniels absent. *[Clerk's Note: This action followed executive session.]*

ADMINISTRATOR'S REPORT

At 1:16 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Local 1849F – Collective bargaining is on hold. The Public Employment Relations Commission has provided information to the Town describing the petition filed by the Guild of Northwest Employees against Council 2.

PAYMENT OF CLAIMS

Moved by Hushebeck, seconded by de Freitas, to affirm the payment of Payroll Warrants and approve the payment of Claim Warrants as enumerated below. Motion passed 3-0 with Monin and Daniels absent.

Approval of 2021 Claim Warrants

- Warrant Number: 48359-48402
- ACH Number: CC 1-6
- Amount: $256,697.50
- Dated: 11/04/21

Approval of October 2021 Payroll Warrants

- Warrant Number: 17432-17441
- ACH Number: 66-68
- Amount: $326,055.44
- Dated: 10/31/21

Approval of October 2021 Treasurer Checks

- Warrant Number: 10164-10178
- ACH Number: EFT-1,2,3,4
- Amount: $ 306,847.70
- Dated: Various

APPROVAL OF MINUTES

Moved by de Freitas, seconded by Starr, to approve the minutes of October 21, 2021 as submitted. Motion passed 3-0 with Monin and Daniels absent.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

EXECUTIVE SESSION

At 1:32 p.m., Mayor Ghatan announced that the Council would be holding an executive session regarding personnel in accordance with the provisions of RCW 42.30.110(1)(g); which was estimated to last 20 minutes. Participants: Town Council, Mayor Ghatan and Administrator Wilson. The session ended at 1:52 p.m. for an actual session time of 20 minutes. See Resolution No. 2679 for action.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:54 p.m. The next regular meeting is scheduled for Thursday, November 4, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, November 18, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3) and Barbara Starr (Position No. 5). Tim Daniels (Position No. 4) was absent. Council consensus to excuse the absence of Councilmember Daniels.

Others: Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME
No public access was forthcoming.

ACTION AND DISCUSSION ITEMS
Proclamation – Small Business Saturday

At 12:02 p.m., Mayor Ghatan proclaimed November 27, 2021 as Small Business Saturday in the Town of Friday Harbor. Small Business Saturday encourages local support of our small businesses and merchants during the holiday season.

PUBLIC HEARING
2022 Revenue Resources

At 12:04 p.m., Mayor Ghatan opened the public hearing regarding the 2022 Revenue Resources. Administrator Wilson described revenue resources for the year. Ad valorum taxes are estimated to be $560,000 minus banked capacity of $200,000 for the recently adopted fire levy by the Voters for SJC Fire District 3. Mayor Ghatan opened the public comment portion of the hearing. Hearing none, Mayor Ghatan closed the public hearing at 12:10 p.m.

Ordinance No. 1734

Moved by Monin, seconded by de Freitas, to adopt Ordinance No. 1734, fixing and levying the amount of Ad Valorem (Property) Taxes for the Town of Friday Harbor for the year 2022. Motion passed 4-0 with Daniels absent.

Resolution No. 2680

At 12:21 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2680 concerning Family Resource Center programs. Administrator Wilson explained that the scope of work for Local Need Programs was approved by motion on November 4, 2021. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2680, allocating American Rescue Plan Act funding to the Family Resource Center for programs to support residents experiencing economic challenges due to the Covid-19 pandemic. Motion passed 4-0 with Daniels absent.

Resolution No. 2681

At 12:26 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2681 concerning the First Street Pocket Park. Capital Project Manager, Pedro Mena provided a construction update and explained that Change Order No. 1 was due to unexpected rock and concrete removal followed by additional clean fill. Mayor Ghatan advocated that the Park be dedicated to the late Mayor David F. Jones as previously discussed.

Moved by de Freitas, seconded by Hushebeck, to adopt Resolution No. 2681, authorizing the Mayor to execute Change Order No. 1 to the First Street Pocket Park Project. Motion passed 4-0 with Daniels absent.

Ordinance No. 1735

At 12:31 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1735 concerning an easement for the WWTP Sewer Outfall Project. Administrator Wilson explained that the Contractor encountered a concrete drywell structure located beneath the right-of-way and easement area which is preventing the directional drilling phase necessary to complete the project. It is recommended to declare an emergency due to the time-sensitive nature of the project and for permitting purposes. The ordinance proposes to acquire an easement from the adjacent property owner to slightly re-route the line. No discussion followed.

Moved by Hushebeck, seconded by Starr, to adopt Ordinance No. 1735 declaring an emergency pursuant to RCW 35.33.081 and authorizing the purchase of a utility easement necessary to repair the WWTP Sewer Outfall Line. Motion passed 4-0 with Daniels absent.

Resolution No. 2682

At 12:38 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2682 concerning easements from the Department of Natural Resources for the WWTP Sewer Outfall Line. Administrator Wilson explained that DNR has offered an aquatic storage easement and aquatic outfall easement for placement of the new sewer outfall line. Discussion followed regarding the leasing fees for placement and storage of the line on the seabed.

Moved by Starr, seconded by Monin, to adopt Resolution No. 2682, authorizing the Mayor to execute and Aquatic Easement & Aquatic Outfall Easement with the Department of Natural Resources. Motion passed 4-0 with Daniels absent.

Social Media Policy

At 12:48 p.m., Mayor Ghatan introduced discussion of a draft social media policy. Clerk Taylor explained that negotiations with Local 1849F are pending and traditionally would be the time to consider and negotiate changes to the Employee Handbooks. A basic draft social media policy was introduced. The Town Council took turns suggesting edits to the policy. No action was taken. Council consensus to return with final edits for consideration.

435 Tucker Avenue – Park and Affordable Housing

At 12:55 p.m., Mayor Ghatan introduced discussion of the Town property located 435 Tucker Avenue across from the Wastewater Treatment Plant. Mayor Ghatan provided a SJC Affordable Housing Commission update; explained that he would like the portion of Town property designated as future park named as soon as possible (suggesting Harbor Park); and reported that he would be returning as a private developer in year 2022 with a proposal to develop affordable micro-housing in the portion of property designated for development. No action was taken.

ADMINISTRATOR'S REPORT

At 1:04 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Storm Event – The recent storm events did not create issues on Spring Street. The improvements are functioning as designed.
- Trout Lake – The reservoir is minus 5 inches to the spillway.
- Opportunity Council – The OC is requesting a letter of support for block grant funding for affordable housing.
- Vaccine Mandates – **Moved by Starr, seconded by de Freitas, to extend the vaccine mandate deadline until such time as Town is able to participate in effects bargaining with Local 1849F. Motion passed 3-0 with Hushebeck abstained and Daniels absent.**
- Collective Bargaining – The agreement with Local 1849F is due to expire December 31, 2021. The union employees will be paid cost of living increases retroactively to January 1, 2022 following successful negotiations. Unrepresented employees may not be paid retroactively. It is recommended to afford the full COLA of 5.5% until negotiations are completed. An ordinance will be presented for consideration.

PAYMENT OF CLAIMS

Moved by Monin, seconded by de Freitas, to approve the payment of Claim Warrants as enumerated below. Motion passed 4-0 with Daniels absent.

Approval of 2021 Claim Warrants

- Warrant Number: 48403-48450
- EFT Number: 1-2
- Amount: $495,201.10
- Dated: 11/18/21

APPROVAL OF MINUTES

Minutes were postponed until December 2, 2021.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:32 p.m. The next regular meeting is scheduled for Thursday, December 2, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, December 2, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER

Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL

Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2), Anna Maria de Freitas (Position No. 3) and Barbara Starr (Position No. 5). Tim Daniels (Position No. 4) was excused.

Mayor, Farhad Ghatan; Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE

Mayor Ghatan conducted the flag salute.

PUBLIC ACCESS TIME

No public access was forthcoming.

ACTION AND DISCUSSION ITEMS

Harbor Life Ring Program (November)

At 12:03 p.m., Mayor Ghatan introduced discussion of Harbor Life Ring Donations for the month of November 2021. Town residents donated $1,646 to the Harbor Life Ring Program in the month of November and Town will provide a matching grant in the amount of $1,646 for a total of $3,292.

Proclamation – Service Clubs and Non-Profits

At 12:08 p.m., Mayor Ghatan proclaimed recognition and appreciation for volunteers and employees of local non-profits and service clubs for their many contributions to the community.

PUBLIC HEARING

2022 Town Budget (3 of 3)

At 12:12 p.m., Mayor Ghatan opened the final public hearing for the 2022 Town Budget. Administrator Wilson revised the request for an additional employee to service 50% as permit technician and 50% as records clerk. Staff provided other new information to share with Council. Mayor Ghatan opened the public comment portion of the hearing. Hearing none, Mayor Ghatan closed the public hearing. The Council thanked Director Berry for her work on preparing the budget. No action was taken.

ACTION AND DISCUSSION ITEMS (CONT.)

Ordinance No. 1736

At 12:15 p.m., Mayor Ghatan introduced discussion of an ordinance naming the new pocket park located on First Street to David Jones Park. Discussion followed regarding future installments as Town moves to finish and dedicate the park. The Council concurred that the proposed naming of David Jones Park was appropriate.

Moved by Monin, seconded by de Freitas, to adopt Ordinance No. 1736, amending Chapter 12.36 FHMC naming the pocket park located on First Street to David Jones Park. Motion passed 4-0 with Daniels absent.

Resolution No. 2683

At 12:24 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2683 concerning surplus equipment. Administrator Wilson explained the process for selling surplus equipment and suggested that a minimum bid be set for the listed generator. No discussion followed.

Moved by Hushebeck, seconded by Monin, to adopt Resolution No. 2683, authorizing the Mayor to offer equipment deemed surplus for public sale. Motion passed 4-0 with Daniels absent.

Resolution No. 2684

At 12:29 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2684 concerning the Sunshine Alley Restrooms. Administrator Wilson recommended that Town exercise its option to renew the agreement and offer a 3% COLA for services. The Contractor was complimented for the services provided. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No. 2684, authorizing the Mayor to execute Amendment No. 1 to the janitorial services agreement for the Sunshine Alley Restrooms. Motion passed 4-0 with Daniels absent.

Resolution Nos. 2685 through 2690

At 12:31 p.m., Mayor Ghatan introduced discussion of draft Resolution Nos. 2685 through 2690 concerning tourism promotion programs. Each of the applications were approved by motion in November. No discussion followed.

Moved by Hushebeck, seconded by Monin, to adopt Resolution Nos. 2685 through 2690, authorizing the Mayor to execute grant agreements with various agencies to provide tourism promotion programs. Motion passed 4-0 with Daniels absent.

Resolution No. 2691

At 12:33 p.m., Mayor Ghatan introduced draft Resolution No. 2691 concerning the Housing Action Plan Implementation Grant. Administrator Wilson explained that the Department of Commerce issued the agreement for acceptance of the $75,000 grant. Mayor Ghatan provided an update for the current SJC Affordable Housing Commission work plan.

Moved by de Freitas, seconded by Starr, to adopt Resolution No. 2691, accepting the interagency agreement with the Department of Commerce for a Housing Action Plan Implementation Grant. Motion passed 4-0 with Daniels absent.

Ordinance No. 1737

At 12:44 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1737 concerning sewer connections. CDPD Director Ryan Erikson explained that the ordinance amends the allowance of large on-site sewage systems. Discussion followed regarding the LOSS system installed on the Buck Property and developer agreements.

Moved by Monin, seconded by de Freitas, to adopt Ordinance No. 1737, amending Section 13.20.030 FHMC relating to sewer connections. Motion passed 4-0 with Daniels absent.

Ordinance No. 1738

At 12:56 p.m., Mayor Ghatan introduced discussion of draft Ordinance No. 1738 concerning permit revocation. CDPD Director Ryan Erikson explained that the code conflicts with current practices. The amendment removes the stipulation that permit revocation is accomplished through SJC District Court. No discussion followed.

Moved by de Freitas, seconded by Starr, to adopt Ordinance No. 1738, amending Section 1.18.070 FHMC relating to permit revocation. Motion passed 4-0 with Daniels absent.

Resolution No. 2692

At 12:59 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2692 concerning an agreement with Duncan Wilson for consulting services. Mayor Ghatan explained that to help with the transition, Mr. Wilson has offered an agreement post-retirement to participate in certain projects like current Strider litigation. No discussion followed.

Moved by Starr, seconded by de Freitas, to adopt Resolution No. 2692, authorizing the Mayor to execute an agreement with Duncan C. Wilson for consulting services. Motion passed 4-0 with Daniels absent.

Resolution No. 2693

At 1:04 p.m., Mayor Ghatan introduced discussion of draft Resolution No. 2693 concerning an employment agreement with Michael Thomas. Administrator Wilson explained that the agreement was in effect until terminated by the Parties. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No. 2693, terminating an agreement with Michael Thomas for the position of Town Administrator. Motion passed 4-0 with Daniels absent.

Call for Bids – 2022 Stormwater Capital Projects

At 1:06 p.m., Mayor Ghatan introduced discussion of urgent stormwater improvements in four locations. Capital Project Manager, Pedro Mena, explained that recent and intense rains are causing stormwater events on Carter Avenue, Nash Street, Guard Street and Nichols Street. Mr. Mena prepared a proposal for upgrades in the various existing storm management locations. Work includes earthwork, pipe/culverts installation and surface restoration.

Moved by Hushebeck, seconded by Monin, to authorize the Call for Bids for the 2022 Stormwater Capital Project. Motion passed 4-0 with Daniels absent.

ADMINISTRATOR'S REPORT

At 1:23 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Employee Jon Gustafson – Mr. Gustafson submitted his employee resignation effective December 7th.
- Union Relations – Town negotiations are still unknown.
- Emergency Utility Easement – The Beach Court easement is cancelled. The Contractor and Engineer found a way to work in the existing right-of-way.
- Opportunity Council – The Town continues to negotiate regarding the stormwater issues at Harborview Apartments.
- Plastic Film Recycling – SJC is looking at options for its own plastic film recycling program.
- WWTP Improvements – Town continues to work with USDA for funding WWTP Improvements.

PAYMENT OF CLAIMS
Moved by Monin, seconded by Starr, to affirm the payment of Payroll Warrants and approve the payment of Claim Warrants as enumerated below. Motion passed 4-0 with Daniels absent.

APPROVAL OF MINUTES
Moved by Starr, seconded by de Freitas, to approve the minutes of November 4th and 18th, 2021 as submitted. Motion passed unanimously.

FUTURE AND NON-AGENDA ITEMS
Mayor Ghatan requested that Councilmember Hushebeck act as Mayor Pro-tem for the next meeting.

CITIZEN RESPONSE
No citizen response was forthcoming.

ADJOURNMENT – Hearing no further business and no objection, Mayor Ghatan adjourned the meeting at 1:40 p.m. The next regular meeting is scheduled for Thursday, December 16, 2021 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk

Thursday, December 16, 2021 – Council Chambers – Afternoon Session

CALL TO ORDER
Mayor Ghatan called the regular session of the Town Council to order at 12:00 p.m.

ROLL CALL
Councilmembers: Steve Hushebeck (Position No. 1), Noel Monin (Position No. 2) and Barbara Starr (Position No. 5). Council excused the absence of de Freitas and Daniels.

Absent: Mayor, Farhad Ghatan, Anna Maria de Freitas (Position No. 3) and Tim Daniels (Position No. 4).

Others Present: Town Administrator, Duncan Wilson; Finance Director, Bethany Berry; and Clerk, Amy Taylor.

FLAG SALUTE
Mayor Pro-tem Hushebeck conducted the flag salute.

PUBLIC ACCESS TIME
Victoria Compton, EDC Director, thanked the Council for funding programs for year 2022.

ACTION AND DISCUSSION ITEMS

Resolution No. 2694

At 12:09 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Resolution No. 2694 concerning the FH Landfill. Administrator Wilson explained that the Town is required to update its Friday Harbor Landfill Post Closure Financial Assurance Plan every year through 2025. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No. 2694, adopting the Friday Harbor Landfill Post Closure Financial Assurance Plan update for years 2022-2025. Motion passed 3-0 with de Freitas and Daniels absent.

Resolution No. 2695

At 12:12 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Resolution No.2695 concerning the First Street Overlay Project. Administrator Wilson explained that additional stormwater design was required to avoid disturbing the new asphalt. No discussion followed.

Moved by Monin, seconded by Starr, to adopt Resolution No. 2695, authorizing the Mayor to execute Supplemental Agreement No. 1 with Gray & Osborne Engineering for the First Street Overlay Project. Motion passed 3-0 with de Freitas and Daniels absent.

Resolution No. 2696

At 12:15 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Resolution No. 2696 concerning a Comprehensive Stormwater Management Plan. Administrator Wilson explained that development of a plan is essential for future development and to alleviate the increasing amount of stormwater. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No. 2696, selecting Gray & Osborne Engineering to provide a Comprehensive Stormwater Management Plan. Motion passed 3-0 with de Freitas and Daniels absent.

Resolution No. 2697

At 12:21 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Resolution No. 2697 concerning the Trout Lake Road Improvement Project. Administrator Wilson and Public Works Director Wayne Haefele explained that the project is ready for acceptance. No discussion followed.

Moved by Monin, seconded by Starr, to adopt Resolution No 2697, accepting the Trout Lake Road Improvement Project. Motion passed 3-0 with de Freitas and Daniels absent.

Resolution No. 2698

At 12:24 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Resolution No. 2698 concerning the Harrison Street Sewer Replacement Project. Administrator Wilson and Project Manager Pedro Mena explained that the project is ready for acceptance. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No 2698, authorizing Change Order No. 1 and accepting the Harrison Street Sewer Replacement Project. Motion passed 3-0 with de Freitas and Daniels absent.

Resolution No. 2701

At 12:29 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Resolution No. 2701 concerning the Marguerite Place Fiber Optic Project. Administrator Wilson and Project Manager Pedro Mena explained that the project is ready for acceptance. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No 2701, authorizing Change Order No. 1 and accepting the Marguerite Place Fiber Optic Project. Motion passed 3-0 with de Freitas and Daniels absent.

Resolution No. 2699

At 12:32 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Resolution No. 2699 concerning the 2022 (Various Location) Stormwater Improvement Project. Administrator Wilson explained that due to unusual rain intensity in the last few years, various locations have been selected for upgrades including Carter Avenue, Nash Street, Nichols Street and Guard Street. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Resolution No. 2699, awarding the 2022 Stormwater Improvement Project to MEM Enterprises. Motion passed 3-0 with de Freitas and Daniels absent.

Resolution No. 2700

At 12:38 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Resolution No. 2700 concerning economic development programs. Administrator Wilson explained that the Town has offered the SJC Economic Development Council a contract to provide promotion and support activities for new business, expanding existing business and enhancing the trade program for year 2022. No discussion followed.

Moved by Monin, seconded by Starr, to adopt Resolution No. 2700, authorizing the Mayor to execute an agreement with the SJC Economic Development Council to promote economic development within the Town for year 2022. Motion passed 3-0 with de Freitas and Daniels absent.

Town Fee Schedule

At 12:40 p.m., Mayor Pro-tem Hushebeck introduced discussion of the amended Fee Schedule for year 2022. Clerk Taylor and CDPD Director Ryan Ericson explained the new structure for Planning Department fees. Councilmember Starr requested that clarification be given to calculated fees.

Moved by Hushebeck, seconded by Monin, to adopt the revised fee schedule for year 2022. Motion passed 3-0 with de Freitas and Daniels absent.

PUBLIC HEARING

2021 Town Budget Amendments

At 12:46 p.m., Mayor Pro-tem Hushebeck opened the public hearing regarding amendments to the 2021 Town Budget. Finance Director Berry provided an explanation of the amendments. Administrator Wilson noted that amendments reconcile the budget before closing. No comments were given by the Council. Hearing no comments from the public, Mayor Pro-tem Hushebeck closed the public hearing.

ACTION AND DISCUSSION ITEMS (cont.)

Ordinance No. 1739

At 12:51 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Ordinance No. 1739 concerning the 2021 Town Budget. No discussion followed.

Moved by Monin, seconded by Starr, to adopt Ordinance No. 1739, amending the 2021 Town Budget. Motion passed 3-0 with de Freitas and Daniels absent.

Ordinance No. 1740

At 12:52 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Ordinance No. 1740 concerning the 2022 Town Budget. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Ordinance No. 1740, adopting the 2022 Town Budget. Motion passed 3-0 with de Freitas and Daniels absent.

Ordinance No. 1741 to Ordinance No. 1746

At 12:55 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Ordinance Nos. 1741 through 1746 concerning utility rate and connection fee increases. Administrator Wilson noted that the Town anticipates a new rate study in Spring 2022. No discussion followed.

Moved by Monin, seconded by Starr, to adopt Ordinance No. 1741 through Ordinance No. 1746 as follows. Motion passed 3-0 with de Freitas and Daniels absent.

- ORDINANCE NO. 1741 - Amending Chapter 13.05 FHMC concerning water rate tables.
- ORDINANCE NO. 1742 - Amending Chapter 13.05 FHMC concerning water connection and installation charges.
- ORDINANCE NO. 1743 - Amending Chapter 13.21 FHMC concerning sewer service charges.
- ORDINANCE NO. 1744 - Amending Chapter 13.21 FHMC concerning sewer connection charges.
- ORDINANCE NO. 1745 - Amending Chapter 13.31 FHMC concerning stormwater service rates.
- ORDINANCE NO. 1746 - Amending Chapter 13.31 FHMC concerning stormwater connection charges.

Ordinance No. 1747

At 12:58 p.m., Mayor Pro-tem Hushebeck introduced discussion of draft Ordinance No. 1707 fixing salaries of officials and non-represented personnel. No discussion followed.

Moved by Starr, seconded by Monin, to adopt Ordinance No. 1747, fixing salaries of officials and non-represented personnel and repealing Ordinance No. 1707 and subsequent amendments in their entirety. Motion passed 3-0 with de Freitas and Daniels absent.

ADMINISTRATOR'S REPORT

At 1:05 p.m., Administrator Wilson presented the Town Council with an update of the following:

- Executive Session – Council is requested to hold a brief session to discuss potential litigation.
- ULID Sewer Feasibility Study – **Moved by Monin, seconded by Starr, to adopt Resolution No. 2702, authorizing the Mayor to execute a cost sharing agreement for a sewer feasibility study for extension of Town utilities (Turn Point). Motion passed 3-0 with de Freitas and Daniels absent.**
- Town Administrator – Interviews are scheduled December 29, 2021.
- Trout Lake – The reservoir is full plus 4" above spillway.

PAYMENT OF CLAIMS

Moved by Monin, seconded by Starr, to approve the payment of Claim Warrants as enumerated below. Motion passed 3-0 with de Freitas and Daniels absent.

Approval of 2021 Claim Warrants

- Warrant Number: 48487-48538
- ACH Number: 1-3
- Amount: $1,083,476.84
- Dated: 12/16/21

APPROVAL OF MINUTES

Moved by Starr, seconded by Hushebeck, to approve the minutes of December 2, 2021 as submitted. Motion passed 3-0 with de Freitas and Starr absent.

FUTURE AND NON-AGENDA ITEMS

No future agenda items were forthcoming.

CITIZEN RESPONSE

No citizen response was forthcoming.

EXECUTIVE SESSION

At 1:30 p.m., Mayor Pro-tem Hushebeck announced that the Council would be holding an executive session regarding potential litigation in accordance with the provisions of RCW 42.30.110(1)(i); which was estimated to last 20 minutes. Participants: Town Council, Attorney Mike Kenyon, Administrator Wilson, CDPD Director Ericson and Clerk Taylor. The session ended at 1:54 p.m. for an actual session time of 24 minutes. The public was properly informed of the time extension. No actions were taken following executive session.

ADJOURNMENT – Hearing no further business and no objection, Mayor Pro-tem Hushebeck adjourned the meeting at 1:54 p.m. The next regular meeting is scheduled for Thursday, January 6, 2022 at 12:00 p.m.

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These minutes were approved by motion of the Town Council. The original document is retained by the Clerk in the Town Council's permanent records. Attest: Amy Taylor, Town of Friday Harbor Clerk